

THE NCA HUB

Examination Preparation

CANADIAN FAMILY LAW

EXAM ANSWER TEMPLATES

36 Complete IRAC Templates | All Syllabus Topics | Replace Placeholders & Apply

Revised January 2026 Syllabus | Exam Date: April 13, 2026

Companion to: NCA Family Law Strategic Notes

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HOW TO USE THESE TEMPLATES

This document provides 36 complete IRAC analysis templates for every examinable topic on the NCA Canadian Family Law syllabus (Revised January 2026). These templates are designed as strategic analytical frameworks — not scripts to copy verbatim, but structures you adapt to the specific facts given.

Purpose

Each template provides the complete IRAC structure pre-written with placeholders. Your job in the exam is to identify which template applies, fill in the placeholders with the specific parties and facts, and add one or two sentences of factual application per step connecting the rule to the specific circumstances described. The law is pre-written — you supply the facts.

Three-Step Exam Process

1. **IDENTIFY:** Read the question once. Note in the margin: (a) which statute applies — Divorce Act, FLA, CLRA, or combination; (b) which issue is raised — jurisdiction, support, parenting, property, domestic contract; (c) which specific sub-issue — e.g., relocation within parenting, undue hardship within child support. This takes 3-4 minutes and prevents missing issues.
2. **LOCATE:** Find the correct template. For a relocation question → Template 26 (Barendregt). For equalization → Template 31 (NFP calculation). For a domestic contract challenge → Template 34 (FLA s.56) and Template 35 (Miglin). For multiple issues (e.g., child support AND s.7 expenses) → use two templates.
3. **APPLY:** Copy the IRAC structure. Replace every [PLACEHOLDER] with specific facts. Every application paragraph must reference the specific facts — not just paraphrase the rule. Use the word 'because' to connect the rule to the fact. Conclude on each issue before moving to the next.

Placeholder Conventions

PLACEHOLDER	WHAT TO REPLACE WITH
[APPLICANT]	The party making the application (e.g., 'Maria', 'the wife', 'the mother').
[RESPONDENT]	The other party (e.g., 'James', 'the husband', 'the father').
[CHILD]	The child(ren) in issue (e.g., 'Sophie, age 8', 'the children').
[PAYOR]	The spouse with the obligation to pay support (higher-income spouse in most cases).
[RECIPIENT]	The spouse receiving support.
[INCOME_P]	The payor spouse's gross annual income from the fact pattern.
[INCOME_R]	The recipient spouse's gross annual income from the fact pattern.
[YEARS]	The length of the marriage or cohabitation in years.
[DATE_M]	The date of marriage.
[DATE_SEP]	The date of separation (the valuation date for NFP purposes).
[PROVINCE]	The province in which the proceedings are brought (default: Ontario).
[ASSET]	The specific asset in issue (e.g., 'the matrimonial home at 123 Main Street').
[AGREEMENT]	The domestic contract at issue (e.g., 'the separation agreement dated March 1, 2020').

⚠ EXAM TIP — THE FAMILY LAW EXAM IS OPEN-BOOK — PRECISION IS EXPECTED

Because your notes are in front of you, examiners expect precise statutory citations. 'Under s.16(1) of the Divorce Act' scores marks. 'Under the legislation' scores nothing. Every rule statement must include the section number AND the leading case. Tab these templates by Part before your exam. In the exam room, the single fastest mark-gaining habit is: statute → section → case → application to specific facts.

Document Structure — 36 Templates Across 8 Parts

PART	CONTENTS
A — Universal Starters	Templates 1-3: Federal/provincial framework, regime identification, master issue spotter
B — Marriage, Cohabitants, Jurisdiction	Templates 4-8: DA s.3 jurisdiction, CLRA s.22 habitual residence (Dunmore 2025), transfer, void/voidable marriage, cohabitants' property (Kerr v Baranow)
C — Divorce and Foreign Recognition	Templates 9-11: Grounds for divorce (s.8), bars to divorce (s.11), recognition of foreign divorces (s.22)
D — Child Support	Templates 12-18: Table amount, Chartier step-parent, multiple obligors, s.7 expenses, high income (s.4), shared parenting (s.9 Contino), retroactive (Colucci)
E — Spousal Support	Templates 19-24: Compensatory (Moge), non-compensatory (Bracklow), contractual (Miglin), SSAG without-child formula, SSAG with-child formula, variation (LMP v LS)
F — Parenting Orders	Templates 25-30: Best interests (s.16(3) all 16 factors), relocation (Barendregt), variation (material change), family violence (s.16(3)(j)), voice of the child, ADR processes
G — Equalization of NFP	Templates 31-33: NFP four-step calculation, matrimonial home (possession and disposition), unequal division (s.5(6))
H — Domestic Contracts	Templates 34-36: Setting aside (FLA s.56(4)), Miglin test for spousal support provisions, cohabitation agreements (FLA s.53)

PART A
UNIVERSAL STARTERS

Template 1 — Master Family Law Opener — Federal/Provincial Framework
IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use at the start of every family law answer to establish the applicable statutory regime. This is the single most important reflex — applying the wrong statute costs marks throughout the answer. State: which parties, which statute, and which issues before analyzing anything.

ISSUE

The issue is whether the [Divorce Act (federal) / Family Law Act, R.S.O. 1990, c. F.3 (Ontario) / Children's Law Reform Act, R.S.O. 1990, c. C.12 (Ontario) / combination] applies to the [support / property / parenting] dispute between [APPLICANT] and [RESPONDENT], and which analytical framework governs.

RULE

The Canadian family law system is divided between federal and provincial jurisdiction under the Constitution Act, 1867, ss.91(26) and 92(12)-(13). DIVORCE ACT (federal): Applies ONLY when married spouses are seeking a divorce or variation of a divorce order. Governs: parenting orders (ss.16-16.96), child support (s.15.1), spousal support (s.15.2), variation (s.17). FAMILY LAW ACT (Ontario, provincial): Governs equalization of net family property (Part I), matrimonial home (Part II), support obligations (Part III, ss.30-33), and domestic contracts (Part IV). Applies to MARRIED spouses for property and support; also applies to qualifying COHABITING spouses (s.29) for support. CHILDREN'S LAW REFORM ACT (Ontario, provincial): Governs parenting orders OUTSIDE of divorce — unmarried parents or married parents not yet proceeding under the Divorce Act. Jurisdiction under s.22 (habitual residence — Dunmore v Mehralian 2025 SCC 20). BOTH CAN APPLY: A divorcing married couple may simultaneously seek a divorce under the Divorce Act AND equalization of NFP under the FLA.

APPLICATION FRAMEWORK

STEP 1: Identify the Parties and Their Status

Because [APPLICANT] and [RESPONDENT] [are married / are cohabiting / are unmarried parents], the applicable regime is [state the statute(s)]. [If married and divorcing: the Divorce Act applies for parenting, child support, and spousal support. The FLA applies for equalization of NFP and matrimonial home rights. Both regimes apply simultaneously.] [If cohabiting: no equalization rights under the FLA — property rights flow from trust law (Kerr v Baranow). Support rights arise under FLA s.29 if they have cohabited for 3+ years or have a child together.] [If unmarried parents not divorcing: the CLRA governs parenting orders; Ontario Child Support Guidelines govern child support.]

STEP 2: Identify Each Issue and Its Governing Statute

[For each issue raised in the question, state:] The issue of [parenting / child support / spousal support / equalization of NFP / domestic contract] is governed by [Divorce Act s.XX / FLA s.XX / CLRA s.XX]. [Proceed to analyze each issue under its governing statute, citing the specific section number.]

CONCLUSION

The applicable statutory regime is [Divorce Act / FLA / CLRA / combination]. [APPLICANT]'s claims for [list each issue with its governing statute] will be analyzed in turn under each applicable provision.

POTENTIAL EXAM SCENARIOS

1. A married couple separating who want both a divorce and property division — Divorce Act + FLA

both apply.

2. A cohabiting couple of 5 years who separate — FLA s.29 support; Kerr v Baranow for property; CLRA for parenting if they have children.

3. A married couple who are separated but not yet divorcing — FLA and CLRA apply; Divorce Act does NOT yet apply.

4. Any question involving children where the parents are not married — CLRA governs parenting and Ontario CSG governs child support.

△ EXAM TIP — ALWAYS STATE THE STATUTE AND SECTION NUMBER

The NCA sample exam shows that markers reward precision: 'Under s.8(2)(a) of the Divorce Act, marriage breakdown is established by separation for one year' scores marks. 'Under the legislation, divorce requires separation' scores nothing. Every rule statement must include the exact section number.

Template 2 — Regime Identification — Divorce Act vs FLA vs CLRA

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use when a question involves multiple issues across different statutory regimes and you need to quickly establish which statute governs which issue.

Essential for multi-part questions (like the NCA sample exam Q2 — parenting under CLRA vs Divorce Act).

ISSUE	GOVERNING STATUTE	KEY SECTION(S)
Divorce	Divorce Act (federal)	s.8 — grounds; s.11 — bars
Parenting order (on divorce)	Divorce Act (federal)	ss.16-16.96; s.16(1) best interests sole criterion
Parenting order (outside divorce)	CLRA (Ontario)	s.21 — parenting order; s.22 — jurisdiction; s.24 — best interests
Child support (on divorce)	Divorce Act + Federal CSG	DA s.15.1; Federal Child Support Guidelines, SOR/97-175
Child support (outside divorce)	FLA or CLRA + Ontario CSG	FLA s.31; CLRA; Ontario Child Support Guidelines, Ont. Reg. 391/97
Spousal support (on divorce)	Divorce Act (federal)	s.15.2 — criteria; s.15.2(6) — four objectives
Spousal support (outside divorce)	FLA (Ontario)	s.33 — criteria; s.29 — definition of 'spouse' for support
Equalization of NFP	FLA (Ontario)	ss.4-5 — NFP calculation; s.5(1) — triggering events
Matrimonial home	FLA (Ontario)	ss.18-26 — possession; s.21 — consent for disposition

Domestic contracts	FLA (Ontario)	ss.51-57 — types, requirements, setting aside
Jurisdiction — parenting	CLRA (Ontario)	s.22 — habitual residence (Dunmore 2025 SCC 20)
Jurisdiction — divorce	Divorce Act (federal)	s.3(1) — 1 year ordinary residence; s.6 — transfer

CONCLUSION

[After completing the regime identification table for the specific issues raised:] The applicable regime for each issue is: [list each issue and its statute]. I will analyze each issue in turn under its governing provision.

⚠ EXAM TIP — MARRIED OR NOT? — THE THRESHOLD QUESTION

Before analyzing any issue, answer: Are these parties married? (1) YES → FLA Part I for property; Divorce Act for divorce-related matters; FLA Part III for support. (2) NO but 3+ years cohabitation or child together → FLA s.29 support; Kerr v Baranow for property; CLRA for parenting. (3) NO and less than 3 years, no child → limited FLA support rights; CLRA for parenting; trust law for property. One wrong assumption about marital status cascades into every subsequent issue.

Template 3 — Master Issue-Spotter — Five-Question Exam Framework**IRAC TEMPLATE****USE THIS TEMPLATE WHEN:**

Use in the first 3-4 minutes of the exam to map every issue before writing a single substantive sentence.

The NCA Family Law exam is 5 questions worth 100 marks — missing a sub-issue in a 30-mark question costs 5-10 marks. This checklist prevents that.

RULE

THE FIVE-QUESTION NCA FAMILY LAW EXAM — EXPECTED STRUCTURE (based on sample exam): Q1 (10 marks): JURISDICTION — which court/province? Transfer? Habitual residence? Q2 (30 marks): PARENTING — best interests + variation + ADR (often two-part) Q3 (20 marks): CHILD SUPPORT — table amount + s.7 + multiple obligors or high income Q4 (20 marks): DOMESTIC CONTRACTS — setting aside + spousal support + Miglin Q5 (20 marks): EQUALIZATION OF NFP — full calculation with excluded property

ISSUE-SPOTTER CHECKLIST — Apply to Every Fact Pattern**PARTIES: Who Are They?**

☐ Married? → DA + FLA available ☐ Cohabiting 3+ years or child together? → FLA s.29 support + Kerr v Baranow property ☐ Unmarried parents? → CLRA parenting + Ontario CSG ☐ Step-parent relationship? → Chartier (standing in place of parent)

PROCEEDINGS: What Are They Seeking?

☐ Divorce? → DA s.8 grounds; s.11 bars ☐ Parenting order? → DA ss.16-16.96 (if divorcing) or CLRA s.21 (if not) ☐ Relocation? → DA ss.16.7-16.96; 60-day notice; Barendregt 2022 SCC 22 ☐ Child support? → Federal/Ontario CSG table amount; s.7; s.9; s.4 ☐ Spousal support? → Entitlement (Moge/Bracklow/Miglin); SSAG quantum ☐ Equalization? → FLA ss.4-5; four-step NFP formula ☐ Variation? → s.17 DA; material change (LMP v LS)

ASSETS: What Property Is in Play?

☐ Matrimonial home? → FLA ss.18-26 (consent for disposition; possession rights) ☐ Pre-marriage assets? → Date-of-marriage deduction (FLA s.4(1)) ☐ Gifts/inheritances? → Excluded property (FLA s.4(2)(a)) — UNLESS it became the matrimonial home ☐ Pensions? → DB vs DC; present value at valuation date ☐ Personal injury damages? → Non-pecuniary = excluded; Lost wages = NOT excluded ☐ Business interests? → Enterprise vs personal goodwill

AGREEMENTS: Any Domestic Contract?

☐ Separation agreement, marriage contract, or cohabitation agreement? ☐ FLA s.56(4) grounds to set aside: disclosure failure, no understanding, otherwise in law ☐ Spousal support provision → Miglin two-stage test ☐ Child support waiver → DA s.15.1(7): NOT binding — court can order support anyway

FLAGS: Special Issues to Raise?

☐ Family violence/coercive control → DA s.16(3)(j) mandatory ☐ Indigenous children → DA s.16(3)(f) cultural heritage mandatory ☐ High conflict/parental alienation → s.16(3)(c) willingness to support relationship ☐ Adult children → CSG s.3(2)(b); Peters; Kowalewich ☐ Imputed income → CSG s.19; Drygala

CONCLUSION

After completing this checklist for the specific fact pattern, I have identified [list all issues]. I will address them in order of mark value, beginning with [highest-mark issue].

PART B

MARRIAGE, COHABITANTS, AND JURISDICTION

Template 4 — Jurisdiction — Divorce Act s.3 (Ordinary Residence)

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use whenever a question asks: which province has jurisdiction to hear the divorce? Can proceedings be transferred? Sample exam Q1 is always a jurisdiction question.

ISSUE

The issue is whether the [PROVINCE] court has jurisdiction to hear [APPLICANT]'s divorce proceedings under s.3(1) of the Divorce Act, and whether the proceedings should be transferred to [OTHER PROVINCE] under s.6.

RULE

Divorce Act s.3(1): A court in a province has jurisdiction to hear and determine a divorce proceeding if either spouse has been ORDINARILY RESIDENT in that province for at least ONE YEAR immediately before the proceedings are commenced. S.6(1) — Transfer: A court may, on application, transfer proceedings to another province where corollary relief is sought affecting the child, if it is in the best interests of the child to do so — considering where the child is most closely connected. S.6(2) — Transfer Criteria: Courts consider: where the child lives; where most of the evidence relating to the child is; convenience of the parties; and — primarily — the BEST INTERESTS OF THE CHILD.

STEP 1: Establish Jurisdiction Under s.3(1)

Because [APPLICANT / RESPONDENT] has been ordinarily resident in [PROVINCE] for [duration] immediately before the commencement of these proceedings, [PROVINCE] has jurisdiction to hear the divorce proceeding under Divorce Act s.3(1). [If both spouses are in different provinces: Both provinces have concurrent jurisdiction, as each spouse has been ordinarily resident in their respective province for at least one year. Both courts could proceed, but the proceedings were commenced first in [PROVINCE].]

STEP 2: Assess Whether Transfer is Appropriate Under s.6

Because [RESPONDENT] seeks transfer of the proceedings to [OTHER PROVINCE] where [CHILD] resides and where most evidence about [CHILD]'s life, schooling, and relationships is located, I must apply s.6(1). The central question is whether it is in [CHILD]'s best interests for the proceedings to continue in [OTHER PROVINCE]. Because [CHILD] has lived with [RESPONDENT] in [OTHER PROVINCE] since [date], attends school there, and all significant evidence about [CHILD]'s life is there, [OTHER PROVINCE] is where [CHILD] is most closely connected. Transfer to [OTHER PROVINCE] should be granted.

STEP 3: The Petition Can Be Filed Before One Year

Note: Under s.3(1), the one-year ordinary residence period must be completed BEFORE the divorce judgment is granted — not before the petition is filed. [APPLICANT] may commence proceedings on the first day of separation, even though one year has not yet elapsed, with the divorce judgment issuing after the one-year period is complete.

CONCLUSION

The [PROVINCE] court [has / does not have] jurisdiction to hear [APPLICANT]'s divorce proceedings under Divorce Act s.3(1) because [APPLICANT / RESPONDENT] has been ordinarily resident in [PROVINCE] for [duration]. [Transfer: The proceedings should / should not be transferred to [OTHER PROVINCE] under s.6(1) because [CHILD]'s closest connections are in [OTHER PROVINCE] and the child's best interests favour that forum.]

POTENTIAL EXAM SCENARIOS

1. Sample exam Q1 pattern: Wife in Vancouver (1 year), husband in Toronto, child lives with husband in Toronto. Wife starts divorce in BC. Husband wants transfer to Ontario → Transfer granted: child's closest connections in Ontario, best interests favour Ontario as forum.
2. Parties both resided in Ontario for 1 year. Both have jurisdiction. No transfer needed.
3. One spouse has only been in Ontario for 8 months. No jurisdiction yet. Must wait until the 1-year mark.

⚠ EXAM TIP — JURISDICTION IS ALWAYS Q1 — MASTER IT

The NCA sample exam consistently puts jurisdiction as Q1 for 10 marks. The structure is always: (1) Apply s.3(1) — has either spouse been ordinarily resident for 1 year? (2) Is transfer sought under s.6? (3) Best interests of the child for transfer. Add Dunmore 2025 SCC 20 if CLRA jurisdiction is also in issue.

Template 5 — Jurisdiction — CLRA s.22 Habitual Residence (Dunmore 2025 SCC 20)

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use whenever parenting proceedings arise under the CLRA (outside of divorce) and a party challenges the Ontario court's jurisdiction.

Critical for international parenting disputes and situations where the family has lived in multiple countries.

Dunmore v Mehralian 2025 SCC 20 — the most important new case on the 2026 syllabus — governs this analysis.

ISSUE

The issue is whether the Ontario court has jurisdiction to make a parenting order under CLRA s.22, specifically whether [CHILD] was habitually resident in Ontario at the time [APPLICANT]'s application was commenced.

RULE

CLRA s.22(1)(a): A court may exercise jurisdiction to make a parenting or contact order in respect of a child if the child is habitually resident in Ontario at the commencement of the application. Dunmore v Mehralian, 2025 SCC 20 (Martin J., 8:1): THE 'AT HOME' TEST. The meaning of 'habitually resident' under CLRA s.22(2) is determined by asking where the child was 'at home' — not where the parents intended to settle. The inquiry is contextual, factual, and child-centred. S.22(2) — PRESCRIBED TIME: Habitual residence is assessed at the 'prescribed time' — the most recent time the child resided in one of the enumerated circumstances. The relevant circumstance for most cases: the last time the child resided with BOTH parents together. S.22(3) — UNILATERAL REMOVAL: A child's habitual residence is NOT changed by the removal or withholding of the child by one parent without the consent of the other. Abduction cannot create habitual residence. S.22(1)(b) — ALTERNATIVE JURISDICTION: Even without habitual residence, Ontario may take jurisdiction if it is the most appropriate forum — considering the child's connections, the balance of convenience, and whether another jurisdiction is proceeding.

STEP 1: Identify the Prescribed Time

Because the prescribed time for [CHILD]'s habitual residence is the last time [CHILD] resided with BOTH parents together, the relevant date is [DATE when the family last lived together]. As at that date, I must determine where [CHILD] was 'at home.'

STEP 2: Apply the 'At Home' Test (Dunmore 2025)

Applying Dunmore's contextual, child-centred inquiry: As at [prescribed time], [CHILD] was [at home / not at home] in Ontario because [specific factors from the fact pattern — apply as many as are present]:
 □ Physical presence: [CHILD] was living with both parents in [PROVINCE/COUNTRY] at the prescribed time.
 □ Duration: The family had been living in [LOCATION] for [period] — [a settled arrangement / a temporary visit].
 □ Community connections: [CHILD] was enrolled in school in [LOCATION] / received healthcare in [LOCATION] / had established social ties in [LOCATION].
 □ Family presence: [CHILD]'s extended family and support network was in [LOCATION].
 □ Parental intentions: While parental intention is RELEVANT under Dunmore (it is one factor), it is NOT determinative — the focus is on [CHILD]'s lived reality.

STEP 3: Address Unilateral Removal (if applicable)

Because [RESPONDENT] argues that [APPLICANT]'s [removal of / withholding of] [CHILD] from [OTHER JURISDICTION] changed [CHILD]'s habitual residence to Ontario, I must apply s.22(3). Because the [removal / withholding] was without [RESPONDENT]'s consent, [CHILD]'s habitual residence was NOT changed by this unilateral act. The analysis must focus on [CHILD]'s habitual residence BEFORE the unilateral removal.

STEP 4: Alternative Jurisdiction Under s.22(1)(b) (if needed)

Alternatively, even if [CHILD]'s habitual residence was not in Ontario at the prescribed time, Ontario may take jurisdiction under s.22(1)(b) because [identify applicable factors: CHILD is currently physically present in Ontario; substantial evidence about CHILD's best interests is available in Ontario; no other jurisdiction with habitual residence is proceeding; CHILD has a real and substantial connection with Ontario; Ontario is the most convenient forum].

CONCLUSION

The Ontario court [HAS / DOES NOT HAVE] jurisdiction to make a parenting order under CLRA s.22. Because [CHILD] was 'at home' in [Ontario / LOCATION] at the prescribed time — applying Dunmore v Mehralian 2025 SCC 20 — [CHILD]'s habitual residence was [Ontario / LOCATION]. [If Ontario has jurisdiction: Proceed to the parenting analysis.] [If Ontario lacks jurisdiction: Apply s.22(1)(b) alternative grounds or conclude that another jurisdiction should hear the matter.]

⚠ EXAM TIP — DUNMORE 2025 — CITE IT EVERY TIME CLRA JURISDICTION IS IN ISSUE

Dunmore v Mehralian 2025 SCC 20 was decided June 2025, is on the January 2026 syllabus, and will be tested. Always cite it for: 'at home' test, rejection of parental intention as determinative, the contextual approach, and s.22(3) unilateral removal. Distinguish it from Balev 2018 SCC 16 (which governs the Hague Convention context, not the CLRA context).

Template 6 — Transfer of Proceedings — Divorce Act s.6

IRAC TEMPLATE**USE THIS TEMPLATE WHEN:**

Use when one party seeks transfer of divorce proceedings from one province to another. Always arises alongside the s.3(1) jurisdiction analysis.

Most commonly tested as part of the Q1 jurisdiction question.

ISSUE

The issue is whether the divorce proceedings currently pending in [PROVINCE 1] should be transferred to [PROVINCE 2] under s.6 of the Divorce Act.

RULE

Divorce Act s.6(1): Where proceedings have been commenced in one province and corollary relief is sought in respect of a child, a court in that province may, on application, order a transfer of the proceedings to the court in another province if it is in the best interests of the child to do so. S.6(2): In deciding whether to transfer, the court considers: where the child is most closely connected; where most of the relevant evidence is located; the convenience of the parties; and — primarily — the BEST INTERESTS OF THE CHILD.

STEP 1: Identify Where the Proceedings Were Commenced

Because [APPLICANT] commenced divorce proceedings in [PROVINCE 1] and [APPLICANT] has been ordinarily resident there for [period], [PROVINCE 1] has jurisdiction under s.3(1). [RESPONDENT] now applies for transfer to [PROVINCE 2].

STEP 2: Apply the Best Interests Test for Transfer

Because [CHILD] currently resides in [PROVINCE 2] with [RESPONDENT], attends school there, has friends and extended family there, and all evidence about [CHILD]'s needs, care arrangements, and relationships is in [PROVINCE 2], [PROVINCE 2] is where [CHILD] is most closely connected. Continuing the proceedings in [PROVINCE 1] — where [CHILD] does not live — is not in [CHILD]'s best interests. The key practical consideration: parenting evidence (school records, medical records, witness testimony about [CHILD]'s daily life) is all in [PROVINCE 2]. Transfer serves the administration of justice and [CHILD]'s interests equally.

CONCLUSION

The proceedings should [be transferred to / remain in] [PROVINCE]. Transfer to [PROVINCE 2] [is / is not] appropriate under Divorce Act s.6(1) because [CHILD]'s closest connections are in [PROVINCE] and the best interests of [CHILD] are best served by that forum.

POTENTIAL EXAM SCENARIOS

1. Wife commenced divorce in BC (where she lives), but the child lives with the husband in Ontario → Transfer to Ontario: child most closely connected there.
2. Both parties and the child are in Ontario but wife filed in Quebec for tactical reasons → Transfer to Ontario.
3. No child: s.6 does not apply — transfer provisions are specifically for proceedings involving corollary relief respecting children.

Template 7 — Void vs Voidable Marriage — Nullity and Annulment

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use when a party claims the marriage is invalid — either void from the beginning (never existed) or voidable (existing but capable of being annulled). Distinguishing void from voidable determines the remedy available.

ISSUE

The issue is whether the marriage between [APPLICANT] and [RESPONDENT] is void ab initio or voidable, and whether a decree of nullity should be granted.

RULE

A VOID marriage never legally existed — it is a nullity from the outset and requires no court order to establish invalidity (though parties typically seek a declaration of nullity for certainty). A VOIDABLE marriage is valid until annulled by a court — it can be ratified. VOID marriages: (1) Prior subsisting valid marriage (bigamy); (2) Marriage between persons within prohibited degrees of consanguinity (Marriage (Prohibited Degrees) Act); (3) Same-sex marriage before legal recognition (prior to 2005 Civil Marriage Act); (4) Absence of genuine consent where the party did not understand they were entering a legal marriage (mistake as to nature of ceremony). VOIDABLE marriages: (1) Impotence — permanent and incurable inability to consummate, existing at the time of marriage; (2) Lack of genuine consent — duress, fear, fraud as to an essential quality; (3) Mental incapacity — at the time of the ceremony (not later).

STEP 1: Identify Whether the Marriage is Void or Voidable

[VOID:] Because [identify the void ground — e.g., 'at the time of the marriage between [APPLICANT] and [RESPONDENT], [RESPONDENT] was already validly married to [THIRD PARTY] — a subsisting marriage not legally terminated'], the purported marriage is VOID AB INITIO. There was never a valid marriage. [APPLICANT] may seek a declaration of nullity. [VOIDABLE:] Because [identify the voidable ground — e.g., '[RESPONDENT] was unable to consummate the marriage due to a permanent and incurable medical condition existing at the time of the ceremony'], the marriage is VOIDABLE at [APPLICANT]'s election. If [APPLICANT] has ratified the marriage by continuing to cohabit with full knowledge of the grounds, the right to annulment may be lost.

STEP 2: Address Ratification (for Voidable Marriages Only)

[Because a voidable marriage is valid until annulled, the question is whether [APPLICANT] has ratified the marriage through subsequent cohabitation with full knowledge of the grounds for voidability. If [APPLICANT] continued to live with [RESPONDENT] as spouses after becoming aware of [the grounds], ratification may have occurred and the right to seek annulment may be lost. If no ratification has occurred, [APPLICANT] may seek a decree of nullity.]

STEP 3: Nullity vs Divorce

Because a decree of nullity declares the marriage never legally existed, the practical distinction from divorce is: (a) annulment is appropriate where the party wants to establish they were never validly married; (b) both annulment and divorce leave the parties free to remarry; (c) in Ontario, both the FLA property regime and the support obligations may still apply after nullity (courts have the jurisdiction to grant support and property rights to parties whose marriage is declared void or voidable).

CONCLUSION

The marriage between [APPLICANT] and [RESPONDENT] is [VOID / VOIDABLE] because [ground].
 [VOID: A declaration of nullity should be granted — the parties were never legally married.]
 [VOIDABLE: A decree of nullity should be granted / refused because [APPLICANT] has / has not ratified the marriage.] [FLA rights: Note that the court may still grant equalization and support rights despite the nullity, as the parties conducted themselves as spouses during their relationship.]

Template 8 — Cohabitants' Property Rights — Unjust Enrichment (Kerr v Baranow)

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use whenever UNMARRIED cohabitants separate and one party claims a share of property held by the other.

Remember: cohabitants have NO equalization rights under the FLA. This is the ONLY avenue for property sharing — unjust enrichment / constructive trust / joint family venture.

Kerr v Baranow [2011] 1 SCR 269 is the mandatory authority. Also cite Kassabian v Marcarian, 2025 ONCA 239.

ISSUE

The issue is whether [APPLICANT] is entitled to a share of property held by [RESPONDENT] on the basis of unjust enrichment, and whether the joint family venture analysis supports a proportionate share of the wealth accumulated during the relationship.

RULE

Kerr v Baranow; Vanasse v Seguin [2011] 1 SCR 269: Unmarried cohabitants have no equalization rights under the Family Law Act (only married spouses are entitled to equalization). Property claims must be pursued through the LAW OF UNJUST ENRICHMENT. THREE ELEMENTS OF UNJUST ENRICHMENT: (1) An enrichment of [RESPONDENT] — financial or non-financial contributions that benefited [RESPONDENT]; (2) A corresponding deprivation of [APPLICANT] — what [APPLICANT] gave that they did not receive back; (3) The absence of a juristic reason for the enrichment — no contract, gift, or other legal basis that justifies [RESPONDENT] retaining the benefit. JOINT FAMILY VENTURE REMEDY: Where the parties have operated as a 'joint family venture,' [APPLICANT] is entitled to a proportionate share of the wealth accumulated through that joint effort. Four factors: mutual effort; economic integration; actual intent to build joint wealth; priority given to the family. Kassabian v Marcarian, 2025 ONCA 239: Non-financial contributions (homemaking, caregiving) count toward the unjust enrichment claim and the joint family venture analysis.

STEP 1: Establish Unjust Enrichment

ENRICHMENT: Because [APPLICANT] made the following contributions to [RESPONDENT]'s property and financial position: [list contributions — e.g., 'contributed \$[amount] to the down payment on the property'; 'provided unpaid domestic labour (cooking, cleaning, child care) for [years], freeing [RESPONDENT] to develop their career and accumulate wealth'; 'sacrificed career advancement by reducing paid employment to care for the children'], [RESPONDENT] was enriched by [APPLICANT]'s contributions. **CORRESPONDING DEPRIVATION:** Because [APPLICANT] provided these contributions without equivalent compensation — [APPLICANT] received no wages for domestic work, no return on their financial contributions — [APPLICANT] suffered a corresponding deprivation. **NO JURISTIC REASON:** Because there was no contract compensating [APPLICANT] for these contributions, and because [APPLICANT] did not intend these contributions as gifts — they were made in the expectation of a mutual relationship — there is no juristic reason for [RESPONDENT] to retain the benefit without sharing it with [APPLICANT].

STEP 2: Apply the Joint Family Venture Analysis

MUTUAL EFFORT: Because [APPLICANT] and [RESPONDENT] [describe collaborative efforts — e.g., 'jointly made major financial decisions, pooled their incomes into a joint account, and worked together to build the family home'], mutual effort is established. **ECONOMIC INTEGRATION:** Because [the parties maintained joint bank accounts / jointly owned property / pooled financial resources], deep economic integration is established. **ACTUAL INTENT:** Because [the parties expressly discussed sharing their assets / behaved as joint financial partners throughout the relationship], their intent to build joint wealth is supported. **PRIORITY OF FAMILY:** Because [APPLICANT] [reduced paid work to care for the children / prioritized the family's needs over individual career advancement], the family was prioritized over individual financial gain.

STEP 3: Quantify the Remedy

Where the joint family venture analysis is satisfied, [APPLICANT] is entitled to a PROPORTIONATE SHARE of the wealth accumulated through the joint venture during the relationship. The appropriate share reflects [APPLICANT]'s relative contribution to the accumulation — having regard to both financial contributions and the value of domestic labour and career sacrifices.

CONCLUSION

[APPLICANT] has established unjust enrichment — enrichment of [RESPONDENT], corresponding deprivation of [APPLICANT], and no juristic reason. Because the joint family venture factors are [satisfied / partially satisfied], [APPLICANT] is entitled to [a proportionate share of the jointly accumulated wealth / a monetary remedy reflecting the value of their contributions]. [APPLICANT] is NOT entitled to equalization under the FLA — that regime applies only to married spouses.

POTENTIAL EXAM SCENARIOS

1. Cohabiting couple of 8 years: one stayed home to raise children while the other built a business → strong joint family venture claim.
2. Short cohabitation (1 year) with minimal financial intertwining → weak joint family venture; may have a resulting trust claim for specific financial contributions to property.
3. Parties cohabited for 5 years but kept fully separate finances → mutual effort may be established but economic integration is weak.

⚠ EXAM TIP — THE COHABITANT PROPERTY TRAP IS WORTH MARKS

Every year, candidates incorrectly apply the FLA equalization formula to cohabitants. State explicitly: 'Because [APPLICANT] and [RESPONDENT] were not married, the FLA Part I equalization regime does not apply. Their property rights must be determined through the law of unjust enrichment under

Kerr v Baranow [2011] 1 SCR 269.' Then go through the three elements. This two-sentence statement alone distinguishes a passing answer from a failing one.

PART C

DIVORCE — GROUNDS, BARS, AND FOREIGN RECOGNITION

Template 9 — Grounds for Divorce — Divorce Act s.8(2) Marriage Breakdown

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use whenever the question asks whether a party can obtain a divorce. Identify which of the three grounds of marriage breakdown applies.

ISSUE

The issue is whether [APPLICANT] has established marriage breakdown under s.8(2) of the Divorce Act sufficient to obtain a divorce.

RULE

Divorce Act s.8(1): The only ground for divorce is marriage breakdown (s.8(2)): (a) SEPARATION FOR ONE YEAR: The spouses have lived separate and apart for at least one year immediately preceding the determination of the divorce, and are still living separate and apart. PRACTICAL NOTE: Divorce proceedings may be commenced at any time — the petition need not wait for the one-year period to expire. The year need only be completed by the date of judgment. RESUMED COHABITATION (s.8(3)): Periods of resumed cohabitation of LESS THAN 90 DAYS do not interrupt the one-year period if the attempt at reconciliation fails. (b)(i) ADULTERY: The respondent spouse has committed adultery. NOTE: The adulterous spouse CANNOT use their own adultery as grounds. Only the innocent spouse can petition on this ground. (b)(ii) PHYSICAL OR MENTAL CRUELTY: The respondent has treated the petitioner with physical or mental cruelty of such a kind as to render intolerable the continued cohabitation of the spouses. The cruelty must be of sufficient gravity — minor incompatibilities do not qualify.

IDENTIFY THE GROUND: Apply the Applicable Ground to the Facts

[ONE-YEAR SEPARATION:] Because [APPLICANT] and [RESPONDENT] separated on [DATE] and have lived separate and apart since that date — a period of [YEARS] — without reasonable prospect of reconciliation, marriage breakdown under s.8(2)(a) is established. [If reconciliation attempted: Because any resumed cohabitation lasted only [X days] before the reconciliation attempt failed (less than 90 days), the separation period has not been broken under s.8(3).] [ADULTERY:] Because [RESPONDENT] committed adultery with [THIRD PARTY] and [APPLICANT] is the innocent party, marriage breakdown is established under s.8(2)(b)(i). [APPLICANT] may petition for divorce on this

ground. [NOTE: [APPLICANT] must not have condoned the adultery — check the s.11 bars analysis.] [CRUELTY:] Because [RESPONDENT] subjected [APPLICANT] to [physical violence / persistent emotional abuse / psychological torment] of such a nature that continued cohabitation has become intolerable to [APPLICANT], marriage breakdown under s.8(2)(b)(ii) is established.

CONCLUSION

Marriage breakdown under Divorce Act s.8(2) is established on the ground of [separation for one year / adultery / physical or mental cruelty]. [APPLICANT] is entitled to a divorce, subject to the court's consideration of the s.11 bars (Template 10).

⚠ EXAM TIP — SEPARATION IS THE PRACTICAL GROUND

In modern practice, virtually every divorce is based on one-year separation — it is no-fault, simple, and does not require allegations of misconduct. Adultery and cruelty grounds are rarely used and carry litigation risks. If the exam gives you one-year separation facts, use them. Only use adultery or cruelty if the question specifically directs you to those facts.

Template 10 — Bars to Divorce — Divorce Act s.11

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use whenever a divorce is sought — the court has a MANDATORY duty to consider the s.11 bars even without the parties raising them.

The most important bar in practice: s.11(1)(d) — has the court satisfied itself that reasonable arrangements have been made for child support?

ISSUE

The issue is whether any of the bars to divorce under s.11 of the Divorce Act apply to prevent the court from granting the divorce.

RULE

Divorce Act s.11 imposes MANDATORY DUTIES on the court — not on the parties — to consider these bars. The court must refuse to grant a divorce if a bar applies. S.11(1)(a) — COLLUSION: The court must refuse to grant a divorce if there is collusion between the spouses — fabrication or suppression of evidence, agreement to deceive the court. NOTE: Separation by mutual agreement is NOT collusion. S.11(1)(b) — CONDONATION (adultery and cruelty only): Where adultery or cruelty is alleged, the court must refuse a divorce if the petitioner condoned the conduct — forgave the spouse and resumed cohabitation with full knowledge. Applies ONLY to adultery and cruelty grounds — not to one-year separation. S.11(1)(c) — CONNIVANCE (adultery only): The court must refuse if the petitioner actively encouraged or facilitated the respondent's adultery. S.11(1)(d) — CHILD SUPPORT ARRANGEMENTS: The court must satisfy itself that reasonable arrangements have been made for the support of any child of the marriage. Where no reasonable arrangements have been made, the court STAYS the divorce until satisfactory arrangements are established. THIS IS THE MOST IMPORTANT BAR IN PRACTICE. *Bruker v Marcovitz* [2007] 3 SCR 607: A contractual promise to grant a religious get (divorce) is enforceable. A spouse who agreed in the separation agreement to grant a get and then refuses for 15 years may be ordered to pay damages.

STEP 1: Collusion — s.11(1)(a)

Because there [is / is no] evidence of fabricated or suppressed evidence or any agreement between the parties to deceive the court about the existence of grounds for divorce, the collusion bar [applies / does not apply]. [If the parties mutually agreed to separate: This is NOT collusion — an agreement to separate does not constitute collusion.]

STEP 2: Condonation — s.11(1)(b) (for adultery/cruelty only)

[Only if adultery or cruelty is alleged:] Because [APPLICANT] [did / did not] resume cohabitation with [RESPONDENT] after [the adultery was discovered / the cruelty occurred] with full knowledge of the grounds, condonation [does / does not] apply. [If cohabitation resumed: The condonation bar must be assessed — did [APPLICANT] forgive [RESPONDENT] and resume married life? If so, this specific act of adultery/cruelty cannot form the basis for divorce.]

STEP 3: Child Support Arrangements — s.11(1)(d)

Because [APPLICANT] and [RESPONDENT] [have / have not] made reasonable arrangements for the support of [CHILD], the court [must / need not] stay the divorce pending such arrangements. [Arrangements not made:] Because no child support order or agreement is in place for [CHILD] at the time of the divorce application, the court must satisfy itself that reasonable arrangements will be made before granting the divorce. [Arrangements made:] Because [a child support order for \$[amount]/month has been made / a separation agreement provides for child support of \$[amount]/month in accordance with the Federal Child Support Guidelines], the court can be satisfied that reasonable arrangements have been made.

CONCLUSION

The s.11 bars analysis: [Collusion: no evidence of collusion — bar does not apply.] [Condonation/connivance: [applicable / not applicable] because [analysis].] [Child support: [Reasonable arrangements have been made / the court should stay the divorce pending reasonable child support arrangements].] Provided no bar applies, the divorce may be granted.

Template 11 — Recognition of Foreign Divorces — Divorce Act s.22**IRAC TEMPLATE****USE THIS TEMPLATE WHEN:**

Use when a party obtained a divorce in another country and seeks to have it recognized in Canada, or when one party argues a foreign divorce is not valid.

Sonia v Ratan 2024 ONCA 152 and Vyazemskaya v Safin 2024 ONCA 156 are the new 2026 syllabus cases.

ISSUE

The issue is whether the divorce granted by the [COUNTRY] court should be recognized in Canada under s.22 of the Divorce Act.

RULE

Divorce Act s.22(1): A divorce granted on or after January 1, 1986 pursuant to a law of a country or subdivision of a country other than Canada by a tribunal or other authority having jurisdiction to do so shall be recognized for all purposes of determining the marital status of persons in Canada if EITHER SPOUSE was ordinarily resident in that country or subdivision for at least one year immediately preceding the commencement of the proceedings for the divorce. S.22(3): Recognition may be denied if granting recognition would be contrary to Canadian public policy. *Sonia v Ratan*, 2024 ONCA 152: The ONCA confirmed the s.22 requirements for recognizing foreign divorces. Key holding: where the s.22(1) requirements are met, the foreign divorce is binding for all purposes of Canadian federal law — the parties are divorced and free to remarry. The corollary relief provisions of the foreign order (parenting, support) do NOT automatically bind Ontario courts — they require separate analysis. *Vyazemskaya v Safin*, 2024 ONCA 156: Recognition of a foreign divorce does not mean automatic recognition of foreign corollary relief. Parenting orders from the foreign jurisdiction require separate analysis under the CLRA (including the habitual residence inquiry) to be recognized or given effect in Ontario.

STEP 1: Establish Ordinary Residence for One Year

Because [APPLICANT / RESPONDENT] was ordinarily resident in [COUNTRY] for at least one year immediately before the commencement of the [COUNTRY] divorce proceedings, the s.22(1) requirement is met. [APPLICANT / RESPONDENT]'s ordinary residence in [COUNTRY] is established by [evidence: e.g., employment, housing, social ties in that country].

STEP 2: Public Policy Exception

Because the [COUNTRY] divorce [was / was not] obtained through a fair process and [does / does not] offend Canadian public policy, the s.22(3) exception [does / does not] apply. [NOTE: The public policy exception is rarely applied — courts are generally reluctant to refuse recognition of a foreign divorce on public policy grounds unless the process was fundamentally unjust, for example, where one party had no notice and no opportunity to participate.]

STEP 3: Corollary Relief — Not Automatically Recognized

[Per *Vyazemskaya v Safin* 2024:] Although the foreign divorce itself is recognized under s.22, the foreign court's corollary relief orders (parenting, support) do NOT automatically bind Ontario courts. [APPLICANT] must separately establish that the foreign parenting order should be recognized — which requires satisfaction of the CLRA jurisdiction requirements or a fresh application for an Ontario parenting order.

CONCLUSION

The [COUNTRY] divorce [IS / IS NOT] recognized in Canada under Divorce Act s.22 because [APPLICANT / RESPONDENT] was ordinarily resident in [COUNTRY] for at least one year before proceedings commenced. [Public policy exception: no basis to deny recognition on public policy grounds.] The parties are [divorced / not divorced] for all purposes of Canadian federal law. [Corollary relief: The foreign corollary orders require separate recognition analysis under the CLRA.]

PART D

CHILD SUPPORT

Template 12 — Child Support — Basic Table Amount (CSG s.3)

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use as the starting point for EVERY child support analysis — the table amount is the baseline from which all other provisions (s.4, s.7, s.9, s.10) depart.

State the table amount first, then address any applicable exceptions.

ISSUE

The issue is what amount of child support [PAYOR] is obligated to pay for [CHILD/CHILDREN] under the Federal Child Support Guidelines.

RULE

Federal Child Support Guidelines, s.3(1): The amount of a child support order for children under the age of majority is the amount set out in the applicable provincial table for the province in which the payor parent ordinarily resides, based on the payor parent's annual income and the number of children for whom support is sought. *Auer v Auer*, 2024 SCC 36: The Federal Child Support Guidelines are valid federal regulations under the Divorce Act. Core foundational principles: (1) both parents have a joint financial obligation to support their children; (2) child support should, as much as possible, provide the child with the same standard of living as if the family had remained together; (3) the specific amounts vary based on the PAYOR PARENT'S income — the recipient parent's income is not used to determine the basic table amount. S.3(2)(b): For children over the age of majority, the court may apply the table amounts or a different amount having regard to the condition, means, needs and other circumstances of the child and the financial ability of each parent to contribute.

STEP 1: Identify the Payor and Their Income

Because [PAYOR] is the parent with whom [CHILD/CHILDREN] does not primarily reside, [PAYOR] is the payor for child support purposes. [PAYOR]'s annual income for child support purposes is \$[INCOME_P]. [Address any income issues: imputed income under CSG s.19; income from a corporation; line 15000 of the most recent tax return.]

STEP 2: Apply the Table Amount

Based on [PAYOR]'s income of \$[INCOME_P] and [number] child(ren) in [PROVINCE], the applicable table amount under CSG s.3(1) is \$[TABLE_AMOUNT]/month. This amount is the PRESUMPTIVE amount — the court shall order this amount unless an exception under ss.3(2), 4, 7, 9, or 10 applies.

STEP 3: Address Any Exceptions (Trigger Analysis)

[If income > \$150,000: → Apply Template 16 (s.4 High Income)] [If 40%+ parenting time: → Apply Template 17 (s.9 Shared Parenting)] [If s.7 special expenses: → Apply Template 15 in addition to the table amount] [If step-parent or multiple obligors: → Apply Template 13 (Chartier) or Template 14 (Multiple Obligors)] [If adult/post-secondary child: Apply CSG s.3(2)(b) analysis]

CONCLUSION

[PAYOR] is ordered to pay child support of \$[TABLE_AMOUNT]/month under CSG s.3(1) as the basic table amount. [If no exceptions apply: This is the total child support obligation.] [If exceptions apply: In addition to this table amount, the court must address [s.7 expenses / s.9 shared parenting adjustment / s.4 high income discretion] — see Templates [X] and [Y].]

⚠ EXAM TIP — THE TABLE AMOUNT IS MANDATORY — NEVER SKIP IT

The table amount under s.3(1) is not discretionary. The court **MUST** order the table amount (subject only to the specific exceptions in ss.3(2), 4, 7, 9, and 10). A candidate who awards a different amount without applying one of the specific exceptions has made a fundamental error. Always state the table amount first, even if you then apply an exception.

Template 13 — Standing in the Place of a Parent — Chartier v Chartier**IRAC TEMPLATE****USE THIS TEMPLATE WHEN:**

Use when a step-parent or non-biological parent is alleged to owe child support by reason of having treated the child as their own.

Applies to: step-parents, common-law partners of a biological parent, any person who established a parent-like relationship with the child.

ISSUE

The issue is whether [RESPONDENT], as [CHILD]'s step-parent / non-biological parent, stands in the place of a parent and thereby owes child support under the Divorce Act.

RULE

Divorce Act s.2(2): A 'child of the marriage' includes a child of both spouses or a child of one spouse for whom the other spouse stands in the place of a parent. Chartier v Chartier [1999] 1 SCR 242: A person stands in the place of a parent when they have **ESTABLISHED A PARENT-LIKE RELATIONSHIP** with the child — treating the child as their own child. Key factors: assumption of daily caretaking responsibilities; financial contribution to the child's upbringing; the child's perception of the relationship (does the child regard this person as a parent?); participation in significant decisions for the child's life; how the person presented themselves to the world in relation to the child. **CRITICAL — CANNOT UNILATERALLY WITHDRAW**: Once a person has stood in the place of a parent, they **CANNOT** unilaterally decide to terminate the relationship upon separation. The obligation to support the child continues even after the relationship with the biological parent ends. The child's interest in continuity of support is paramount.

STEP 1: Establish Whether [RESPONDENT] Stood in the Place of a Parent

Because [RESPONDENT] [describe specific conduct establishing a parent-like relationship — e.g., 'lived with [CHILD] and [APPLICANT] for [years] and during that time assumed daily caretaking responsibilities, paid for [CHILD]'s school and extracurricular activities, attended parent-teacher meetings, was known to [CHILD]'s school and community as [CHILD]'s parent, and [CHILD] referred to [RESPONDENT] as [Dad/Mom]'], [RESPONDENT] established a parent-like relationship with

[CHILD]. [RESPONDENT] stood in the place of a parent.

STEP 2: Address the Attempted Withdrawal

Because [RESPONDENT] cannot unilaterally withdraw from the parental role upon separation (Chartier), [RESPONDENT]'s statement that they 'want nothing more to do with [CHILD]' has no legal effect on the support obligation. The obligation to support [CHILD] was established by [RESPONDENT]'s conduct during the relationship and persists after separation.

STEP 3: Determine the Quantum

Because [RESPONDENT] stands in the place of a parent, the Federal Child Support Guidelines apply. [RESPONDENT]'s income is \$[INCOME] and the applicable table amount for [number] child(ren) in [PROVINCE] is \$[AMOUNT]/month. [If a biological parent also owes support: apply Template 14 — Multiple Obligor to apportion the obligation.]

CONCLUSION

[RESPONDENT] stands in the place of a parent with respect to [CHILD] based on the parent-like relationship established during the [years]-year relationship. [RESPONDENT]'s subsequent attempt to withdraw from the parental role is legally ineffective (Chartier). [RESPONDENT] is obligated to pay child support of \$[TABLE_AMOUNT]/month under the Federal Child Support Guidelines.

POTENTIAL EXAM SCENARIOS

1. Sample exam Q3A pattern: Step-parent cohabited for 7 years, treated the children as their own → stands in the place of a parent; cannot withdraw after separation.
2. Brief cohabitation of 6 months with limited involvement in child's life → standing in the place of a parent may NOT be established; analyze the specific conduct carefully.
3. Biological father also owes support → apply Multiple Obligor template (Template 14).

Template 14 — Multiple Obligor — Apportionment of Child Support (Wright v Zaver)

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use when BOTH a biological parent AND a step-parent (who stands in the place of a parent under Chartier) owe child support for the same child.

The court cannot simply add both table amounts together — it must apportion to avoid double recovery.

ISSUE

The issue is how child support should be apportioned between [BIOLOGICAL PARENT] and [STEP-PARENT], both of whom owe child support obligations to [CHILD], to avoid double recovery.

RULE

Where both a biological parent and a step-parent owe child support, the court must APPORTION the total obligation between them. The court cannot order both to pay their full table amounts — this would constitute double recovery for the recipient. CSG s.5: Where a spouse against whom a child support order is sought stands in the place of a parent to a child, the amount of a child support order is, in the court's discretion, such amount as the court considers appropriate, having regard to the Guidelines and any other parent's legal duty to support the child. *Wright v Zaver* [2002] OJ No. 1098 (ONCA): Courts apportion the support obligation between biological parent and step-parent, giving primary weight to the biological parent's obligation and supplementing it with the step-parent's obligation based on the step-parent's income and the nature of the step-parent relationship. Double recovery is impermissible.

STEP 1: Calculate Each Parent's Table Amount Separately

BIOLOGICAL PARENT [RESPONDENT 1]: Income of \$[INCOME_1]. Table amount for [number] child(ren) in [PROVINCE] = \$[TABLE_1]/month. STEP-PARENT [RESPONDENT 2]: Income of \$[INCOME_2]. Table amount for [number] child(ren) in [PROVINCE] = \$[TABLE_2]/month. TOTAL (unapportioned) = \$[TABLE_1 + TABLE_2]/month. This figure is NOT the award — it is the starting point for apportionment.

STEP 2: Apportion Between the Two Obligor

Because [BIOLOGICAL PARENT]'s primary obligation to support [CHILD] (as biological parent) must be established first, [BIOLOGICAL PARENT]'s support obligation is \$[TABLE_1]/month — the full table amount based on their income. Because [STEP-PARENT]'s obligation SUPPLEMENTS the biological parent's obligation (Chartier; *Wright v Zaver*), [STEP-PARENT]'s support should be REDUCED from the full table amount. The court exercises its discretion under CSG s.5 to set [STEP-PARENT]'s amount at \$[REDUCED_AMOUNT]/month, reflecting: (a) the existence of the biological parent's primary obligation; (b) [STEP-PARENT]'s income and ability to pay; (c) the length and nature of the step-parent relationship; (d) the total child support flowing to [APPLICANT] from both obligors.

STEP 3: Verify No Double Recovery

The total child support received by [APPLICANT] will be \$[BIOLOGICAL_AMOUNT] + \$[STEP_AMOUNT] = \$[TOTAL]/month. This total is [above / below / equal to] what a single parent earning \$[INCOME_1 + INCOME_2] would pay at full table amounts. Courts ensure the combined amount does not exceed what is appropriate for [CHILD]'s needs — avoiding a windfall while ensuring adequate support.

CONCLUSION

Child support is apportioned as follows: [BIOLOGICAL PARENT] shall pay \$[AMOUNT]/month (full table amount based on their income of \$[INCOME_1]); [STEP-PARENT] shall pay \$[REDUCED_AMOUNT]/month (reduced from full table amount under CSG s.5, having regard to [BIOLOGICAL PARENT]'s primary obligation). Total child support received by [APPLICANT]: \$[TOTAL]/month.

⚠ EXAM TIP — NEVER ADD TABLE AMOUNTS DIRECTLY

The most common multiple obligor error: adding both table amounts together. Wrong. The table amounts are calculated separately to understand each obligor's theoretical maximum, then the court apportions. The biological parent typically pays full table amount; the step-parent's obligation is reduced. Cite *Wright v Zaver* and CSG s.5.

Template 15 — Section 7 Special or Extraordinary Expenses

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use in addition to the basic table amount template (Template 12) whenever the question involves: daycare, private school fees, post-secondary education costs, extracurricular activities, uninsured medical/dental expenses, or orthodontics.

Section 7 expenses are shared in proportion to incomes — NOT 50/50.

ISSUE

The issue is whether [specific expense] qualifies as a special or extraordinary expense under CSG s.7, and how it should be apportioned between [PAYOR] and [RECIPIENT].

RULE

CSG s.7: In addition to the basic table amount, the court may order a contribution toward any of the following special or extraordinary expenses: (a) Child care expenses arising from a parent's employment, illness, disability, or education/training; (b) Medical/dental insurance premiums attributable to the child; (c) Health-care expenses (not covered by insurance, exceeding \$100/year): orthodontics, therapy, prescription medications; (d) Extraordinary extracurricular activities (having regard to the child's abilities, level of commitment, and the family's pre-separation lifestyle); (e) Post-secondary education expenses; (f) Primary or secondary school expenses or other extraordinary educational expenses. CSG s.7(2): Each parent contributes IN PROPORTION TO THEIR RESPECTIVE INCOMES — not 50/50. The steps: 1. Determine the gross annual cost of the expense; 2. Deduct any tax credits, subsidies, or other financial assistance available; 3. The net cost is shared in proportion to incomes.

STEP 1: Establish That the Expense Qualifies Under s.7

Because [the expense] is [identify the applicable s.7 category: e.g., 'daycare costs arising from [RECIPIENT]'s employment' (s.7(1)(a)) / 'uninsured orthodontic costs exceeding \$100/year' (s.7(1)(c)) / 'private school tuition' (s.7(1)(f)) / 'post-secondary tuition, books, and residence' (s.7(1)(e)) / 'competitive sports costs that are extraordinary given the family's pre-separation lifestyle' (s.7(1)(d))], this expense qualifies as a s.7 special or extraordinary expense. [For extracurricular activities: Because this activity involves [describe elite training / significant competition costs / specialized coaching], and because the family's pre-separation standard of living included [describe relevant lifestyle], the expense is extraordinary within the meaning of s.7(1)(d).]

STEP 2: Calculate the Net Annual Cost

The gross annual cost of [expense] is \$[GROSS AMOUNT]. After deducting [any applicable subsidies / tax credits available / government assistance], the net annual cost shared between the parents is \$[NET AMOUNT].

STEP 3: Apportion in Proportion to Incomes

[PAYOR]'s income: \$[INCOME_P]. [RECIPIENT]'s income: \$[INCOME_R]. Combined income: \$[COMBINED]. [PAYOR]'s proportionate share: $\frac{\$[INCOME_P]}{\$[COMBINED]} = [X]\% \times \$[NET\ AMOUNT] = \$[PAYOR_SHARE]/year = \$[PAYOR_MONTHLY]/month$. [RECIPIENT]'s proportionate

share: $\$[\text{INCOME_R}] \div \$[\text{COMBINED}] = [Y]\% \times \$[\text{NET AMOUNT}] = \$[\text{RECIPIENT_SHARE}]/\text{year} = \$[\text{RECIPIENT_MONTHLY}]/\text{month}$. [Note: The recipient parent's share represents their contribution — the payor must pay their portion to the recipient, not directly to the service provider, unless otherwise ordered.]

CONCLUSION

[EXPENSE] qualifies as a s.7 special or extraordinary expense. [PAYOR] shall contribute $\$[\text{PAYOR_MONTHLY}]/\text{month}$ ([X]% of the net annual cost based on their proportionate income share of [X]% of the combined parental income). This is payable in addition to the basic table amount of $\$[\text{TABLE_AMOUNT}]/\text{month}$.

POTENTIAL EXAM SCENARIOS

1. Private school \$20,000/year each for two children. Payor income \$950,000, recipient income \$200,000. Combined = \$1,150,000. Payor share = $82.6\% \times \$40,000 = \$33,040/\text{year}$.
2. Daycare \$1,500/month while recipient works full-time → clearly qualifies under s.7(1)(a).
3. Recreational soccer registration (\$300/year) → NOT extraordinary; does NOT qualify as s.7 expense.
4. Post-secondary tuition, books, residence → qualifies under s.7(1)(e); child's own income and RESP also relevant to net amount.

⚠ EXAM TIP — PROPORTIONAL TO INCOMES — NOT 50/50

Section 7 expenses are almost never split 50/50 unless the parents earn the same income. The split is proportional to GROSS INCOMES. In the sample exam Q3B: Zeus income \$950,000 + Leda income \$200,000 = \$1,150,000. Zeus pays 82.6%; Leda pays 17.4% of the s.7 expenses. Show the calculation — markers reward the arithmetic.

Template 16 — High Income Payor — CSG s.4 (Income Over \$150,000)

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use whenever the payor parent's annual income exceeds \$150,000. The table amount is mandatory for the first \$150,000; the court has discretion for income above that threshold.

Francis v Baker [1999] 3 SCR 250 and Auer v Auer 2024 SCC 36 govern.

ISSUE

The issue is what child support [PAYOR] should pay when their income of $\$[\text{INCOME_P}]$ exceeds \$150,000, having regard to CSG s.4.

RULE

CSG s.4: Where the payor parent's annual income EXCEEDS \$150,000, the court shall order the table amount for the first \$150,000 of income as the minimum. For the portion of income ABOVE \$150,000, the court may order: (a) The amount determined by applying the table to the full income (no departure from the table); OR (b) A DIFFERENT AMOUNT having regard to the condition, means, needs and other circumstances of the child and the financial ability of each parent to contribute.

Francis v Baker [1999] 3 SCR 250: The table amount at \$150,000 is the FLOOR, not the ceiling. Children of high-income payors are entitled to benefit from the payor's high income. However, at very high incomes, courts may moderate the table amount for the excess income to avoid a windfall. The focus is on the child's actual standard of living needs and the pre-separation standard of living. Auer v Auer 2024 SCC 36: Children should benefit from both parents' income within their relative means. A needs-based approach alone is rejected — the child's entitlement is not limited to the bare necessities.

STEP 1: Calculate the Minimum — Table Amount at \$150,000

Because [PAYOR]'s income is \$[INCOME_P], the court MUST order at minimum the table amount for \$150,000 income. For [number] child(ren) in [PROVINCE], the table amount at \$150,000 income is \$[TABLE_150]/month. This is the FLOOR — the court cannot order less than this amount.

STEP 2: Exercise Discretion for Income Above \$150,000 (s.4(b))

Because [PAYOR]'s income of \$[INCOME_P] exceeds \$150,000 by \$[EXCESS] (\$[INCOME_P] – \$150,000 = \$[EXCESS]), the court exercises its discretion under s.4(b) for this excess income. The full table amount at \$[INCOME_P] would be \$[FULL_TABLE]/month. In exercising discretion, the court considers: (a) The children's standard of living if the family had remained together — would the children's pre-separation standard of living have included [private school / luxury vacations / extracurricular activities commensurate with the family's income level]? (b) The children's actual needs (including s.7 expenses) and whether the full table amount exceeds what is necessary; (c) Each parent's income and ability to contribute — [RECIPIENT]'s income of \$[INCOME_R] is relevant to determining the appropriate total amount; (d) Whether trust income or other assets benefit the children ([if applicable from facts]).

STEP 3: Determine the Appropriate Amount

Because the children's pre-separation standard of living included [specific indicators from facts], and because [PAYOR]'s income substantially exceeds the table threshold, the court should order \$[DETERMINED_AMOUNT]/month — [which is the full table amount / which is a departure from the full table amount at \$[PAYOR_MONTHLY]]. [If departing from full table: Because the full table amount would produce \$[FULL_TABLE]/month which [exceeds the children's realistic needs / would constitute a windfall], a departure to \$[DETERMINED_AMOUNT]/month is appropriate.]

CONCLUSION

[PAYOR] shall pay child support of \$[AMOUNT]/month. The table amount at \$150,000 income (\$[TABLE_150]/month) is the mandatory minimum under CSG s.4. [For income above \$150,000: The court exercises s.4(b) discretion and orders \$[ADDITIONAL]/month for the excess income, for a total of \$[TOTAL]/month.] This reflects the children's entitlement to benefit from [PAYOR]'s high income (Francis v Baker; Auer 2024) while avoiding a windfall.

Template 17 — Shared Parenting (40%+) — CSG s.9 (Contino Three-Step)

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use when the payor parent exercises parenting time with the child for at least 40% of the time over the course of a year. The Contino three-step analysis is mandatory.

ISSUE

The issue is what child support [PAYOR] should pay in a shared parenting arrangement where [PAYOR] exercises [X]% of annual parenting time with [CHILD], engaging CSG s.9.

RULE

CSG s.9: Where a spouse exercises a right of access to, or has physical custody of, a child for not less than 40% of the time over the course of a year, the amount of child support shall be determined by taking into account: (a) The amounts set out in the applicable tables for each of the spouses; (b) The increased costs of shared custody arrangements; and (c) The conditions, means, needs and other circumstances of each spouse and of any child for whom support is sought. *Contino v Leonelli-Contino* [2005] 3 SCR 217: THE MANDATORY THREE-STEP ANALYSIS. Step 1 — the SET-OFF — is the starting point, not the end point. Courts MUST proceed through all three steps. Mechanically applying only the set-off is a legal error.

STEP 1 (Contino): Set-Off the Two Table Amounts

[PAYOR] income: \$[INCOME_P] → table amount for [number] child(ren) = \$[TABLE_P]/month.
 [RECIPIENT] income: \$[INCOME_R] → table amount for [number] child(ren) = \$[TABLE_R]/month.
 SET-OFF: \$[TABLE_P] – \$[TABLE_R] = \$[SETOFF]/month [payable from the higher-income parent to the lower-income parent]. IMPORTANT: This set-off amount is the STARTING POINT ONLY — it is not automatically the final amount. Proceed to Steps 2 and 3.

STEP 2 (Contino): Examine the Increased Costs of Shared Parenting

Because shared parenting creates INCREASED COSTS — both parents must maintain a home suitable for the child, both must purchase duplicates of essential items (clothing, school supplies, etc.), and transportation between homes adds cost — the court must examine whether the set-off amount adequately reflects these increased costs. [If the set-off underestimates costs: The amount may need to be increased above the set-off to fairly reflect the actual costs of the shared arrangement.] [If the set-off overestimates costs: The amount may be appropriate at the set-off level.]

STEP 3 (Contino): Assess Conditions, Means, Needs and Circumstances

Because child support must reflect the actual condition, means, needs and circumstances of [CHILD] and both parents, the court considers: [CHILD]'s specific needs; each parent's standard of living; whether the set-off amount would result in too great a disparity in the child's standard of living between the two households; and whether any adjustment is needed to ensure [CHILD] has a comparable standard of living in both homes.

CONCLUSION

Applying the Contino three-step analysis: Step 1 set-off = \$[SETOFF]/month. After considering the increased costs of shared parenting (Step 2) and the conditions, means, needs and circumstances of all parties (Step 3), the appropriate child support order is \$[FINAL_AMOUNT]/month payable by [PAYOR] to [RECIPIENT].

△ EXAM TIP — 40% IS THE THRESHOLD — STATE IT EXPLICITLY

Before applying CSG s.9, state: 'Because [PAYOR] exercises [X]% of parenting time over the course of a year, which exceeds the 40% threshold in CSG s.9, the Contino three-step analysis applies.' If parenting time is below 40%, CSG s.9 does not apply and the basic table amount governs.

Template 18 — Retroactive Child Support — Colucci v Colucci**IRAC TEMPLATE****USE THIS TEMPLATE WHEN:**

Use when a party seeks child support for a period in the past — when the payor failed to pay the appropriate amount or failed to disclose income increases.

Colucci v Colucci 2021 SCC 24 is the definitive framework.

ISSUE

The issue is whether [APPLICANT] is entitled to retroactive child support for the period from [START DATE] to [END DATE], and what amount should be ordered.

RULE

Colucci v Colucci, 2021 SCC 24: The definitive SCC framework for retroactive child support. KEY PRINCIPLES: 1. STARTING DATE: The presumptive starting date for retroactive support is the DATE OF FIRST NOTICE (when the recipient first asked for increased support or put the payor on notice that support was inadequate). Courts generally go back to that date. 2. THREE-YEAR CAP (default): Courts should generally not order retroactive support going back more than THREE YEARS before the date of notice, absent special circumstances. 3. PAYOR'S POSITIVE OBLIGATION: Payor parents have an ONGOING, POSITIVE OBLIGATION to disclose income increases to the recipient — the recipient does not need to ask. A payor who earns more and says nothing breaches this obligation. 4. FACTORS: Courts consider: (a) the payor's conduct (did they deliberately conceal income?); (b) the recipient's reason for delay in seeking support; (c) the hardship retroactive payment would cause to the payor; (d) the needs of the children. Michel v Graydon, 2020 SCC 24: Retroactive child support may be ordered even after children reach the age of majority.

STEP 1: Identify the Date of First Notice

Because [APPLICANT] first put [PAYOR] on notice that increased support was sought on [DATE OF NOTICE], the presumptive starting date for retroactive support is [DATE OF NOTICE]. [If no formal notice was given: The date of effective notice may be the date the application was filed, or an earlier date if the payor clearly knew increased support was needed.]

STEP 2: Assess the Three-Year Cap

Because the default rule in Colucci is that retroactive support should not extend more than three years before the date of notice, the retroactive period runs from [DATE: three years before notice] to [DATE OF NOTICE]. [If special circumstances justify going back further: Because [PAYOR] deliberately concealed income increases / the recipient was in a vulnerable position that prevented earlier notice], the three-year cap may be extended.

STEP 3: Analyze the Payor's Conduct

Because [PAYOR] [failed to disclose income increases that occurred in years [X, Y, Z] / paid support of \$[AMOUNT]/month while earning \$[HIGHER_INCOME] — a deliberate underpayment], [PAYOR]'s conduct weighs in favour of ordering retroactive support for the full period. [If payor's conduct was innocent: Because [PAYOR]'s failure to adjust was due to [genuine ignorance of the obligation / reasonable reliance on a court order / other innocent explanation], the payor's conduct is a factor mitigating against full retroactive payment.]

STEP 4: Calculate the Retroactive Amount

For each year in the retroactive period: (a) determine what the correct table amount should have been based on [PAYOR]'s actual income; (b) subtract what [PAYOR] actually paid; (c) the difference is the underpayment for that year. Total retroactive amount = sum of annual underpayments.

CONCLUSION

Retroactive child support of \$[TOTAL_RETROACTIVE] is ordered for the period [START] to [END]. Because [PAYOR]'s conduct [demonstrates a positive obligation breach / was deliberate concealment / was innocent], and because the retroactive period is [within / outside] the three-year presumptive limit, the retroactive award is [appropriate / adjusted from the full amount]. [PAYOR]'s positive obligation to disclose income increases going forward is confirmed (Colucci 2021).

PART E

SPOUSAL SUPPORT

Template 19 — Spousal Support — Compensatory Entitlement (Moge)

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use when the marriage caused economic disadvantage — one spouse sacrificed career or education to fulfil marital roles (child-rearing, homemaking, supporting the other's career).

The longer the marriage and the more pronounced the role differentiation, the stronger the compensatory claim.

ISSUE

The issue is whether [RECIPIENT] is entitled to compensatory spousal support under Divorce Act s.15.2 on the basis that the marriage caused economic disadvantage to [RECIPIENT].

RULE

Moge v Moge [1992] 3 SCR 813: Compensatory spousal support is awarded to address the ECONOMIC ADVANTAGES AND DISADVANTAGES arising from the marriage or its breakdown. Support is NOT charity — it is compensation for documentable economic sacrifice caused by the marriage. The CAUSAL CONNECTION test: Was [RECIPIENT]'s economic disadvantage CAUSED by the marriage and the roles assumed during the marriage? Key indicators: withdrawal from the workforce or reduction in work to care for children; foregoing education or career development; supporting the other spouse's career at the expense of their own; relocation for the other spouse's employment. Divorce Act s.15.2(6): All support orders must be designed to: (a) recognize economic advantages/disadvantages from the marriage; (b) apportion financial consequences of child care; (c) relieve economic hardship; (d) promote self-sufficiency. Leskun v Leskun [2006] 1 SCR 920: Misconduct is IRRELEVANT to quantum — the focus is on economic effect, not moral fault (s.15.2(5) DA).

STEP 1: Establish the Economic Disadvantage

Because [RECIPIENT] [withdrew from the workforce for [years] to care for [CHILD/CHILDREN] / reduced employment to part-time while [PAYOR] pursued full-time career advancement / relocated [number] times for [PAYOR]'s employment, disrupting [RECIPIENT]'s own career development / declined career opportunities to assume primary caregiving responsibilities], [RECIPIENT] suffered concrete economic disadvantage as a direct result of the marital roles assumed.

STEP 2: Establish the Causal Connection to the Marriage

Because [RECIPIENT]'s current reduced earning capacity — \$[INCOME_R] compared to [PAYOR]'s \$[INCOME_P] — is directly attributable to the career sacrifices made during the [YEARS]-year marriage, and because [RECIPIENT]'s pre-marriage career trajectory would have been [describe: more advanced / comparable to [PAYOR]'s / higher income] absent the marital role assumption, the causal connection between the marriage and the economic disadvantage is established.

STEP 3: Determine Quantum Using the SSAG

Because compensatory entitlement is established, quantum is determined using the Spousal Support Advisory Guidelines WITHOUT-CHILD formula: (1) Income differential: \$[INCOME_P] – \$[INCOME_R] = \$[DIFFERENTIAL]; (2) Quantum range: \$[DIFFERENTIAL] × 1.5% × [YEARS] to \$[DIFFERENTIAL] × 2% × [YEARS] per year = \$[LOW]/month to \$[HIGH]/month; (3) Duration: [YEARS × 0.5] to [YEARS × 1] years = [DURATION_LOW] to [DURATION_HIGH] years. [Given the length of the marriage and severity of disadvantage, an award in the [upper / middle / lower] range is appropriate.]

CONCLUSION

[RECIPIENT] is entitled to compensatory spousal support under s.15.2 of the Divorce Act (Moge). The marriage caused direct economic disadvantage through [role sacrifice]. Applying the SSAG without-child formula, spousal support of \$[AMOUNT]/month for [DURATION] years is appropriate, recognizing [RECIPIENT]'s economic sacrifice while promoting self-sufficiency within a reasonable period (s.15.2(6)(d)).

⚠ EXAM TIP — MOGE IS NOT LIMITED TO LONG MARRIAGES

While longer marriages produce stronger compensatory claims, even shorter marriages can produce compensatory entitlement if there was significant role differentiation and demonstrable career sacrifice. The question is always: did the marriage CAUSE the economic disadvantage? Address the causal connection explicitly.

Template 20 — Spousal Support — Non-Compensatory Entitlement (Bracklow)

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use when the marriage itself did not cause economic disadvantage (no career sacrifice, equal earners) but one spouse is in NEED — due to illness, disability, or the simple fact of dependency created by a long marriage.

Also use when Moge compensatory entitlement is weak but there is still genuine need.

ISSUE

The issue is whether [RECIPIENT] is entitled to non-compensatory spousal support under Divorce Act s.15.2 on the basis of need arising from [illness / disability / financial dependence / other cause], even absent an economic disadvantage caused by the marriage.

RULE

Bracklow v Bracklow [1999] 1 SCR 420: The marriage creates a RELATIONSHIP OF MUTUAL OBLIGATION. Where one spouse is unable to be self-sufficient — regardless of whether the marriage caused that inability — the other spouse has an obligation to assist, based on NEED. Non-compensatory support does NOT require a causal connection between the marriage and the need. It requires only: (1) the existence of genuine need; (2) the other spouse's ability to pay; (3) a relationship of sufficient quality and duration to justify the obligation. Non-compensatory support is typically awarded for: illness or disability that prevents self-sufficiency; long marriages where one spouse simply became economically dependent; situations where the marriage gave both parties a standard of living the dependent spouse cannot maintain independently. Duration of non-compensatory support: typically shorter than compensatory support; reviewed regularly; may terminate if the recipient's circumstances improve.

STEP 1: Establish Need

Because [RECIPIENT] [suffers from a diagnosed illness/disability that prevents full-time employment / earns \$[INCOME_R] which is insufficient to maintain a reasonable standard of living / is elderly and has no realistic prospects for increased income], [RECIPIENT] has a genuine and ongoing need for financial support.

STEP 2: Establish the Other Spouse's Ability to Pay

Because [PAYOR] earns \$[INCOME_P] and has the financial means to contribute to [RECIPIENT]'s support without undue hardship to [PAYOR]'s own household, [PAYOR]'s ability to pay is established.

STEP 3: Assess the Relationship Foundation for the Obligation

Because [APPLICANT] and [RESPONDENT] were together for [YEARS] years — [the marriage creating a relationship of mutual interdependence / a relationship of sufficient quality and duration that [PAYOR] should not be entirely indifferent to [RECIPIENT]'s hardship] — the relationship-based obligation to provide non-compensatory support exists (Bracklow).

STEP 4: Quantum and Duration — SSAG as Guide

Non-compensatory support is generally awarded in the lower range of the SSAG and for a defined duration, absent compelling circumstances. Applying the SSAG: income differential \$[DIFFERENTIAL]; SSAG range \$[LOW] to \$[HIGH]/month; duration [range]. Because this is non-compensatory support and self-sufficiency may be possible [within a defined period / is not realistic given the disability], an award of \$[AMOUNT]/month for [DURATION] [years / until further order] is appropriate.

CONCLUSION

[RECIPIENT] is entitled to non-compensatory spousal support under Divorce Act s.15.2 (Bracklow). [RECIPIENT]'s need — arising from [illness/disability/dependence] — is established. [PAYOR]'s ability to pay is established. The marriage-based obligation of mutual support justifies an award of \$[AMOUNT]/month for [DURATION]. This is non-compensatory support — it is not based on economic disadvantage caused by the marriage but on the obligation of mutual support that flows from the marital relationship.

Template 21 — Spousal Support Contractual Entitlement — Miglin Two-Stage Test

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use whenever a separation agreement or domestic contract contains a spousal support provision — either awarding or waiving support.

When the recipient seeks to override a waiver of support → apply Miglin two stages.

When the payor seeks to reduce support below the contractual amount → apply Miglin two stages.

Sample exam Q4 is always a domestic contract question — Miglin is always required.

ISSUE

The issue is whether [RECIPIENT]'s contractual [waiver of spousal support / entitlement to \$[AMOUNT]/month in spousal support] in [AGREEMENT] should be given effect, or whether the court should override the agreement and make a different order under Divorce Act s.15.2.

RULE

Miglin v Miglin [2003] 1 SCR 303: Courts respect contractual agreements about spousal support IF the agreement passes both stages of the Miglin test. The test is designed to balance certainty (parties should be able to rely on their agreements) against protection (courts should not enforce fundamentally unjust agreements). **STAGE 1 — CIRCUMSTANCES AT CONTRACTING:** Was the agreement negotiated and entered into in fair circumstances? • Did both parties receive **INDEPENDENT LEGAL ADVICE (ILA)**? • Was there **FULL FINANCIAL DISCLOSURE** by both parties? • Was there any **DURESS**, emotional pressure, or significant **POWER IMBALANCE**? • Did the agreement, at the time executed, substantially comply with the Divorce Act s.15.2(6) objectives? **STAGE 2 — CURRENT COMPLIANCE:** Has there been a **RADICAL CHANGE** in circumstances not within the parties' reasonable contemplation when they signed — so fundamental that the agreement should not be enforced as written? • Does the agreement continue to substantially reflect the Divorce

Act objectives? • Would enforcement produce a result the parties could not have reasonably anticipated?

STAGE 1: Assess Circumstances at Contracting

INDEPENDENT LEGAL ADVICE: Because [RECIPIENT] [received / did not receive] independent legal advice before signing [AGREEMENT], [the Stage 1 fairness factor is / is not] satisfied on this element. FINANCIAL DISCLOSURE: Because [PAYOR] [made full financial disclosure / failed to disclose [specific assets]] at the time of contracting, [the disclosure requirement is / is not] satisfied. POWER IMBALANCE: Because [identify any imbalance — e.g., 'PAYOR is a lawyer who personally drafted the agreement; RECIPIENT has no legal training and did not receive ILA'], [there is / is not] a significant power imbalance that undermines the agreement's fairness. COMPLIANCE WITH s.15.2(6): At the time of execution, does the agreement substantially reflect the four Divorce Act objectives? [Assess: does it recognize economic advantages/disadvantages from the marriage? Does it apportion child care costs? Does it relieve hardship? Does it promote self-sufficiency?] [STAGE 1 CONCLUSION: Because [identify specific deficiencies], the agreement was / was not entered into in circumstances free from overreaching. The court should give this agreement [little / substantial] weight.]

STAGE 2: Assess Current Compliance with Divorce Act Objectives

Because [RECIPIENT]'s current circumstances are as follows: [income \$[INCOME_R], health status, employment prospects], and because [PAYOR]'s current circumstances are: [income \$[INCOME_P]], I must assess whether the agreement continues to substantially comply with the s.15.2(6) objectives. [If radical change: Because [RECIPIENT] has since developed [illness / disability / significantly changed circumstances] that was not anticipated when the agreement was made [YEARS] ago — [RECIPIENT]'s health deterioration/income reduction is a radical change not within the parties' reasonable contemplation — the agreement no longer substantially reflects the Divorce Act objectives and should be given less weight.] [If no radical change: Because [RECIPIENT]'s current circumstances are not fundamentally different from what was reasonably contemplated at the time of the agreement, the agreement should be respected.]

CONCLUSION

Applying the Miglin two-stage test: Stage 1 — the agreement [was / was not] entered into in fair circumstances [because: identify Stage 1 deficiencies]. Stage 2 — the agreement [continues to / no longer] substantially reflects the Divorce Act objectives [because: identify radical change or lack thereof]. Therefore, the court should [respect the agreement and [award support as contracted / find no entitlement to support as contracted] / override the agreement and conduct a fresh support analysis under Moge/Bracklow/SSAG].

POTENTIAL EXAM SCENARIOS

1. Sample exam Q4: Mary signed a separation agreement prepared by Edward (a lawyer) without ILA, waived full financial disclosure, and waived all spousal support. Analysis: Stage 1 fails — significant power imbalance, no ILA, no disclosure. Court should give agreement little weight. Fresh support analysis required.
2. Parties with equal bargaining power, both with ILA, full disclosure, fair agreement → Stage 1 passes. Only set aside if radical change (Stage 2).
3. Agreement signed 10 years ago; recipient subsequently developed serious illness → Stage 2 radical change analysis.

Template 22 — SSAG Quantum — Without-Child Support Formula**IRAC TEMPLATE****USE THIS TEMPLATE WHEN:**

Use when entitlement is established AND there are NO dependent children (or all children are independent adults).

The without-child formula produces quantum and duration ranges.

ISSUE

The issue is what amount and duration of spousal support [PAYOR] should pay [RECIPIENT], applying the Spousal Support Advisory Guidelines (SSAG) without-child formula.

RULE

The Spousal Support Advisory Guidelines (Rogerson/Thompson, 2008, revised 2016) are NOT legally binding but are highly persuasive. Courts must explain departures from SSAG ranges. WITHOUT-CHILD FORMULA: QUANTUM: 1.5% to 2% × gross income differential × years of cohabitation, capped at 50% of the income differential. DURATION: 0.5 to 1 year × years of cohabitation (or indefinite if 20+ years or 'rule of 65' — payor's age + years of cohabitation ≥ 65).

STEP 1: Calculate the SSAG Quantum Range

GROSS INCOME DIFFERENTIAL: $[\text{INCOME}_P] - [\text{INCOME}_R] = [\text{DIFFERENTIAL}]/\text{year}$. LOW END: $[\text{DIFFERENTIAL}] \times 1.5\% \times [\text{YEARS}] = [\text{LOW_ANNUAL}]/\text{year} = [\text{LOW_MONTHLY}]/\text{month}$. HIGH END: $[\text{DIFFERENTIAL}] \times 2\% \times [\text{YEARS}] = [\text{HIGH_ANNUAL}]/\text{year} = [\text{HIGH_MONTHLY}]/\text{month}$. CAP CHECK: $50\% \times [\text{DIFFERENTIAL}] = [\text{CAP_ANNUAL}]/\text{year} = [\text{CAP_MONTHLY}]/\text{month}$. Our range of $[\text{LOW_MONTHLY}]$ to $[\text{HIGH_MONTHLY}]$ [is / is not] within the cap. SSAG QUANTUM RANGE: $[\text{LOW_MONTHLY}]$ to $[\text{HIGH_MONTHLY}]$ per month.

STEP 2: Calculate the SSAG Duration Range

LOW END: $[\text{YEARS}] \times 0.5 = [\text{DURATION_LOW}]$ years. HIGH END: $[\text{YEARS}] \times 1 = [\text{DURATION_HIGH}]$ years. [INDEFINITE CHECK: Is $[\text{YEARS}] \geq 20$? OR does $[\text{PAYOR}]$'s age + $[\text{YEARS}] \geq 65$ (rule of 65)?] [If yes: indefinite support may be appropriate, subject to variation on a material change.] SSAG DURATION RANGE: $[\text{DURATION_LOW}]$ to $[\text{DURATION_HIGH}]$ years [or indefinite if rule of 65 applies].

STEP 3: Select Position Within the Range

Position within the range depends on: (a) strength of the compensatory claim (major career sacrifice → upper range); (b) non-compensatory need (disability/illness → consider upper range); (c) self-sufficiency prospects (strong job market, young recipient → lower range and shorter duration); (d) length of marriage (longer → toward higher end). Because [identify relevant factors from the fact pattern], an award of $[\text{SELECTED_AMOUNT}]/\text{month}$ for $[\text{SELECTED_DURATION}]$ is appropriate.

CONCLUSION

Applying the SSAG without-child formula: gross income differential = $[\text{DIFFERENTIAL}]$; SSAG

quantum range = \$[LOW_MONTHLY] to \$[HIGH_MONTHLY]/month; SSAG duration range = [DURATION_LOW] to [DURATION_HIGH] years. The appropriate award is \$[SELECTED_AMOUNT]/month for [SELECTED_DURATION], reflecting [identify the factors that justify the selected position within the range].

⚠ EXAM TIP — SHOW THE CALCULATION — MARKS FOLLOW THE MATH

Write out every calculation step explicitly. The marker is looking for: gross income differential, multiplication by 1.5%/2%, multiplication by years, monthly conversion, and the duration formula. Even if your final number is slightly off, showing the correct method earns marks.

Template 23 — SSAG Quantum — With-Child Support Formula

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use when there are dependent children AND concurrent child support. The with-child formula accounts for child support already flowing between the parties.

ISSUE

The issue is what amount of spousal support [PAYOR] should pay [RECIPIENT] under the SSAG with-child formula, having regard to the concurrent child support obligation.

RULE

The SSAG with-child formula applies when there are dependent children and a concurrent child support order. The formula targets placing the RECIPIENT HOUSEHOLD'S share of combined net disposable income (CNDI) between 40% and 46%. KEY STEPS: (1) Calculate each party's net disposable income (NDI) — gross income minus taxes minus child support paid/received; (2) Calculate the CNDI = sum of both parties' NDIs; (3) Determine what spousal support would give the recipient's household 40%-46% of CNDI; (4) Duration = same as without-child formula (or longer in some cases).

STEP 1: Calculate Net Disposable Income (NDI)

PAYOR NDI $\approx$ gross income – federal/provincial taxes – child support paid = \$[INCOME_P] – [estimated taxes approx. \$[TAX_P]] – child support \$[CS] $\times$ 12 $\approx$ \$[NDI_P]/year = \$[NDI_P_MONTHLY]/month. RECIPIENT NDI $\approx$ gross income – federal/provincial taxes + child support received = \$[INCOME_R] – [estimated taxes approx. \$[TAX_R]] + child support \$[CS] $\times$ 12 $\approx$ \$[NDI_R]/year = \$[NDI_R_MONTHLY]/month.

STEP 2: Calculate CNDI and Target Range

COMBINED NET DISPOSABLE INCOME (CNDI) = [PAYOR NDI] + [RECIPIENT NDI] = \$[NDI_P_MONTHLY] + \$[NDI_R_MONTHLY] = \$[CNDI_MONTHLY]/month. TARGET FOR RECIPIENT HOUSEHOLD: LOW END (40%): $40\% \times \$[CNDI_MONTHLY] = \$[40PCT]/month$ [for recipient's household] HIGH END (46%): $46\% \times \$[CNDI_MONTHLY] = \$[46PCT]/month$ [for recipient's household] Spousal support = [TARGET] – [current RECIPIENT NDI without spousal

support] LOW END spousal support = $[\$40\text{PCT}] - [\text{\$}[\text{NDI_R_MONTHLY}]] = [\text{\$}[\text{SS_LOW}]]/\text{month}$ HIGH
 END spousal support = $[\$46\text{PCT}] - [\text{\$}[\text{NDI_R_MONTHLY}]] = [\text{\$}[\text{SS_HIGH}]]/\text{month}$

CONCLUSION

Applying the SSAG with-child formula: $\text{CNDI} = [\text{\$}[\text{CNDI_MONTHLY}]]/\text{month}$. To place [RECIPIENT]'s household at the 40-46% CNDI range, spousal support of $[\text{\$}[\text{SS_LOW}]]$ to $[\text{\$}[\text{SS_HIGH}]]/\text{month}$ is indicated. The appropriate award is $[\text{\$}[\text{SELECTED}]]/\text{month}$. Duration: [DURATION] (same as without-child formula or based on period of dependency).

Template 24 — Variation of Spousal Support — Material Change in Circumstances (LMP v LS)

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use when either party seeks to vary a spousal support order on the basis of changed circumstances. LMP v LS [2011] 3 SCR 775 is the mandatory authority.

ISSUE

The issue is whether there has been a material change in circumstances since the spousal support order was made, such that variation of [PAYOR]'s support obligation of $[\text{\$}[\text{AMOUNT}]]/\text{month}$ is warranted.

RULE

Divorce Act s.17: A court may vary a spousal support order where there has been a change in the condition, means, needs or other circumstances of either former spouse since the order or last variation. LMP v LS [2011] 3 SCR 775: THREE-PART MATERIAL CHANGE TEST: (1) There has been a change in circumstances since the last order; (2) The change was NOT within the reasonable contemplation of the parties (or the court) at the time of the last order; (3) The change is of sufficient magnitude that it likely would have resulted in a different order if known at the time. ONCE MATERIAL CHANGE IS ESTABLISHED: The court conducts a FRESH ASSESSMENT of the appropriate spousal support — it does not merely adjust the original order. The original order is the starting point but is not binding.

STEP 1: Identify the Change

Because [identify the change: e.g., '[PAYOR]'s income has increased from $[\text{\$}[\text{ORIGINAL_INCOME}]]$ to $[\text{\$}[\text{NEW_INCOME}]]$ since the last order' / '[RECIPIENT] has remarried and their new partner earns $[\text{\$}[\text{PARTNER_INCOME}]]$ ' / '[RECIPIENT] has developed [illness/disability] preventing them from working' / '[RECIPIENT] has retired at age [AGE]'], there has been a change in circumstances.

STEP 2: Was This Change Foreseeable?

Because [this change was / was not] within the reasonable contemplation of the parties at the time of the last order [YEAR], [the test is / is not] satisfied on this element. [If foreseeable: the order may have

been drafted to address this specific event — check whether the order contains anticipatory provisions.] [If not foreseeable: the change was not anticipated and constitutes a new circumstance.]

STEP 3: Is the Change of Sufficient Magnitude?

Because [the income change is \$[DIFFERENCE] — a [X]% increase/decrease / the disability is permanent and prevents all employment / the recipient's need has increased by \$[AMOUNT]/month due to health costs], this change would likely have resulted in a different order if known at the time. The material change threshold is [met / not met].

STEP 4: Fresh Assessment

Because the material change threshold is established, I conduct a fresh assessment: (a) Entitlement: [Is entitlement still present — Moge/Bracklow?] (b) Quantum: Applying the SSAG [without/with]-child formula to current incomes: [PAYOR] \$[NEW_INCOME_P], [RECIPIENT] \$[NEW_INCOME_R] → SSAG range \$[NEW_LOW] to \$[NEW_HIGH]/month. (c) Duration: [Remaining duration / indefinite].

CONCLUSION

A material change in circumstances has [been / not been] established. [If established:] Applying LMP v LS, the court conducts a fresh assessment and varies the spousal support order from \$[ORIGINAL]/month to \$[NEW]/month [for [DURATION] / on an indefinite basis]. [If not established:] The variation application is dismissed — the change [does not meet the materiality threshold / was within the reasonable contemplation of the parties].

PART F PARENTING ORDERS

Template 25 — Best Interests of the Child — Divorce Act s.16(3) Full Analysis

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use for every parenting order question. The best interests standard is the SOLE criterion under s.16(1). Apply ALL relevant s.16(3) factors — do not cherry-pick. This is the most heavily tested template in the entire document — Q2 of the sample exam is always parenting.

ISSUE

The issue is what parenting order is in [CHILD]'s best interests under Divorce Act s.16(1), having regard to the factors in s.16(3).

RULE

Divorce Act s.16(1): The court shall make any parenting order that is in the BEST INTERESTS OF THE CHILD — this is the SOLE CRITERION. The rights or preferences of the parents are secondary. The court's only question is: what arrangement best serves this particular child? S.16(6) — PARENTING TIME PRINCIPLE: Give effect to the principle that a child should have as much time with each parent as is CONSISTENT WITH THE BEST INTERESTS OF THE CHILD. This is a principle within the best interests standard, not an overriding rule. S.16(3) — 16 FACTORS (non-exhaustive): (a) Child's needs given age/stage of development (b) Nature and quality of relationships between child and each parent (c) Each parent's WILLINGNESS TO SUPPORT the child's relationship with the other parent (d) History of care — who has been the primary caregiver? (e) Child's views and preferences (given appropriate weight for age/maturity) (f) Cultural, linguistic, religious, and spiritual upbringing — especially Indigenous heritage (g) Each parent's care plan (h) Ability and willingness of each person to care for and meet child's needs (i-j) FAMILY VIOLENCE — see Template 28 for full analysis (s.16(3)(j) MANDATORY) (k) Civil or criminal proceedings relevant to safety/security/wellbeing

APPLY RELEVANT s.16(3) FACTORS: Systematic Application to the Facts

FACTOR (a) — Child's Needs: Because [CHILD] is [age] years old and at [developmental stage], [CHILD]'s needs include [stability in schooling / consistent caregiving / [special needs identified in facts]]. [The proposed arrangement address / does not address] these developmental needs. FACTOR (b) — Quality of Relationships: Because [CHILD]'s relationship with [APPLICANT] is characterized by [describe: 'consistent daily involvement, shared activities, strong emotional bond'] and with [RESPONDENT] by [describe relationship quality], [identify which parent has the stronger existing relationship — but note this is ONE factor, not determinative]. FACTOR (c) — Willingness to Support: Because [APPLICANT / RESPONDENT] [has demonstrated willingness to support [CHILD]'s relationship with the other parent / has attempted to alienate [CHILD] from the other parent by [specific conduct]], this factor weighs [for / against] [APPLICANT / RESPONDENT]. This factor captures the 'friendly parent' principle. FACTOR (d) — History of Care: Because [APPLICANT] has been [CHILD]'s primary caregiver for the [YEARS] years of the child's life — [describe: 'attending all medical appointments, managing school, providing daily care'] while [RESPONDENT] worked full-time with limited day-to-day involvement — [APPLICANT]'s caregiving history weighs significantly in [APPLICANT]'s favour. FACTOR (e) — Child's Preferences: Because [CHILD] is [age] years old and has [clearly / partially] expressed a preference to live primarily with [APPLICANT / RESPONDENT], this preference [carries significant weight given [CHILD]'s maturity / is noted but given limited weight given [CHILD]'s young age (age [X])]. FACTOR (f) — Cultural/Linguistic/Indigenous Heritage: [If applicable: Because [CHILD] has [Indigenous heritage / [specific cultural/linguistic background]], [APPLICANT's / RESPONDENT's] proposed plan to [maintain cultural connections through [specific plan]] better serves [CHILD]'s cultural identity under s.16(3)(f).] FACTOR (j) — Family Violence: [If applicable: Apply Template 28 — Family Violence in Parenting]

APPLY s.16(6): Parenting Time Principle

Applying s.16(6), the court gives effect to the principle that [CHILD] should have as much time with each parent as is CONSISTENT WITH [CHILD]'s best interests. Because [CHILD]'s wellbeing is [best served by primary residence with [APPLICANT] with significant parenting time for [RESPONDENT] / served by shared parenting time], the proposed order of [describe proposed arrangement] reflects this principle appropriately.

CONCLUSION

Applying the best interests standard (Divorce Act s.16(1)) and the factors in s.16(3): [A parenting order should be made as follows: [describe decision-making responsibility + parenting time

arrangement]. This order is in [CHILD]'s best interests because [summarize the most important factors — factors (c), (d), (e), and (j) are most likely to be decisive on the specific facts].]

⚠ EXAM TIP — ALWAYS APPLY AT LEAST 5 FACTORS — SYSTEMATICALLY

The examiner is looking for systematic application of the s.16(3) factors — not just the factors that support your conclusion. Identify ALL relevant factors, note how each weighs, and reach a conclusion. A Q2 parenting answer that cites s.16(1) and s.16(3) but applies only 2 factors will not pass. Apply every factor that has a factual basis in the question.

Template 26 — Relocation — Divorce Act ss.16.7-16.96 and Barendregt 2022 SCC 22

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use whenever one parent proposes to move with the child to a location that would significantly impact the other parent's relationship with the child.

This is one of the most tested issues in the parenting context. Barendregt v Grebliunas 2022 SCC 22 is the mandatory authority.

ISSUE

The issue is whether [APPLICANT/RESPONDENT] should be permitted to relocate with [CHILD] from [CURRENT LOCATION] to [PROPOSED LOCATION], having regard to Divorce Act ss.16.7-16.96 and the framework in Barendregt v Grebliunas 2022 SCC 22.

RULE

S.16.7 — Definition: A 'relocation' is a change in residence of a child or person with parenting time likely to have a SIGNIFICANT IMPACT on the child's relationship with another person with parenting time or contact rights. S.16.9 — 60 Days Notice: The person proposing to relocate must give at least 60 days' written notice to every person with parenting time or contact rights. Notice must include: proposed date; location of new residence; proposal for parenting time after relocation. S.16.92 — Burden of Proof (primarily with relocating parent): If the child spends substantially more time with the person proposing to relocate, the OTHER PARENT bears the burden of proving the relocation is NOT in the child's best interests. S.16.93 — Burden of Proof (equal parenting time): If the current arrangement provides for substantially EQUAL parenting time, the RELOCATING PARENT bears the burden of proving the relocation IS in the child's best interests. S.16.92(2) — What Is NOT Considered: The court SHALL NOT consider whether the person proposing to move would relocate without the child. Barendregt v Grebliunas, 2022 SCC 22: Best interests analysis governs. NO PRESUMPTION for or against relocation. The inquiry is highly fact-specific and child-centred. Appellate intervention is extremely limited — trial judge's findings receive high deference.

STEP 1: Was Proper Notice Given?

Because [APPLICANT / RESPONDENT] [gave / did not give] 60 days' written notice to [the other parent / all persons with parenting time or contact rights] before the proposed relocation date, the s.16.9 notice requirement [was / was not] satisfied. [If notice was deficient: The failure to give proper notice is a factor the court will consider in the overall best interests analysis — it signals a lack of respect for the other parent's rights and the court's oversight function.]

STEP 2: Identify the Burden of Proof (ss.16.92-16.93)

Because the current parenting arrangement provides for [describe: 'primarily [APPLICANT] with parenting time to [RESPONDENT] of [X]%' / 'substantially equal parenting time at approximately 50/50']: [PRIMARILY WITH RELOCATING PARENT (s.16.92):] The burden falls on [RESPONDENT] (the non-relocating parent) to prove that the relocation is NOT in [CHILD]'s best interests. [SUBSTANTIALLY EQUAL PARENTING TIME (s.16.93):] The burden falls on [APPLICANT] (the relocating parent) to prove that the relocation IS in [CHILD]'s best interests.

STEP 3: Apply the Best Interests Analysis (Barendregt)

REASONS FOR RELOCATION: Because [APPLICANT]'s reasons for relocating are [employment opportunity / proximity to family support / new partner's location / other], these reasons are relevant ONLY to the extent they bear on [CHILD]'s best interests — not the parent's personal interests (Barendregt). IMPACT ON [CHILD]'s RELATIONSHIP WITH [RESPONDENT]: Because the proposed relocation would [significantly reduce / eliminate / change the nature of] [CHILD]'s in-person relationship with [RESPONDENT] — [describe how: distance, travel time, costs], the impact on this relationship is a significant factor. PROPOSED POST-RELOCATION CONTACT PLAN: Because [APPLICANT] proposes [describe proposed contact plan — extended holiday parenting time, video calls], the court must assess the REALISM of this plan. [Are the proposed long-distance visits feasible? Will [CHILD] maintain a meaningful relationship with [RESPONDENT]?] [CHILD]'s COMMUNITY TIES: Because [CHILD] has [describe: close friendships at current school / extended family in current location / established extracurricular activities / cultural connections], the disruption to these ties is a factor weighing against relocation.

CONCLUSION

Applying Barendregt v Grebliunas 2022 SCC 22 and Divorce Act ss.16.7-16.96: The relocation [SHOULD / SHOULD NOT] be permitted. Because the parenting arrangement is [primarily with [APPLICANT] / substantially equal], the burden falls on [RESPONDENT / APPLICANT] and [RESPONDENT has / has not / APPLICANT has / has not] discharged that burden. On the best interests analysis, [the factors that favour relocation: identify] [outweigh / are outweighed by] [the factors against: identify]. [If relocation permitted: Specify the post-relocation parenting time arrangement.] [If denied: The child remains in [CURRENT LOCATION]; [APPLICANT] may apply for variation of the parenting order if circumstances change.]

⚠ EXAM TIP — NEVER DECIDE RELOCATION BASED ON THE PARENT'S REASONS ALONE

The parent's desire to relocate for personal reasons (new job, new relationship, family proximity) is NOT sufficient to justify relocation. The analysis is CHILD-CENTRED: does relocation serve the child's best interests? A parent's testimony that they will move regardless should not be considered (s.16.92(2)). Always bring the analysis back to what is best for the child.

Template 27 — Variation of Parenting Orders — Material Change in Circumstances

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use when either parent seeks to vary an existing parenting order — whether for custody/decision-making, parenting time, or contact.

The material change test is mandatory before the court will hear the variation application.

ISSUE

The issue is whether there has been a material change in circumstances since the last parenting order was made, such that variation of the existing parenting arrangement is justified.

RULE

Divorce Act s.17(1): A court may vary a parenting order if there has been a change in the condition, means, needs or other circumstances of the child since the making of the order. **THREE-PART MATERIAL CHANGE TEST:** (1) A change in circumstances has occurred; (2) The change was NOT within the reasonable contemplation of the parties at the time of the original order; (3) The change is of **SUFFICIENT MAGNITUDE** that, if known at the time, it likely would have resulted in a different order. **ONCE MATERIAL CHANGE IS ESTABLISHED:** The court conducts a fresh assessment of the best interests of the child, applying all s.16(3) factors. The original order is the starting point — but a fresh assessment, not merely an adjustment, is required. High standard: The material change threshold protects the child's interest in stability and finality of parenting arrangements. Courts will not entertain repeated applications to vary based on minor changes.

STEP 1: Identify the Change

Because [describe the change: e.g., '[APPLICANT] proposes to relocate to [CITY] — see Template 26 for relocation analysis' / '[CHILD] has expressed a clear and consistent preference to change primary residence' / '[RESPONDENT] has engaged in conduct that creates safety concerns for [CHILD]' / '[CHILD]'s special needs have been diagnosed since the order was made' / 'significant evidence of parental alienation has emerged'], a change in circumstances has occurred since the order was made [DATE].

STEP 2: Was the Change Within Reasonable Contemplation?

Because [this change was / was not] within the reasonable contemplation of the parties when the original order was made [YEAR], [this element is / is not] satisfied. [If within contemplation: If the order was made with knowledge that [CHILD] would [start high school / grow older / develop preferences], these anticipated changes do not constitute a 'material change.'] [If not within contemplation: The [diagnosis / change in residence / alienating conduct] was not known and could not reasonably have been foreseen at the time of the order.]

STEP 3: Is the Change Sufficient?

Because [the change] — [describe specifically] — would likely have resulted in a different parenting arrangement if known at the time of the original order, the magnitude threshold is met. [A court aware of [CHILD]'s current circumstances would have addressed them differently in the original order.]

STEP 4: Fresh Best Interests Assessment

Having established a material change, the court conducts a fresh best interests assessment applying all s.16(3) factors to current circumstances. [Apply Template 25 — Best Interests Analysis to the current circumstances.]

CONCLUSION

A material change in circumstances [has / has not] been established. [If established:] A fresh best interests assessment is required (Template 25). [If not established:] The variation application is dismissed — the change does not meet the material change threshold and the existing parenting order remains in force.

Template 28 — Family Violence in Parenting Orders — Divorce Act s.16(3)(j) and s.16(4)

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use in EVERY parenting question where family violence (including coercive control) is indicated by the facts.

Divorce Act s.16(3)(j) is a MANDATORY consideration — failure to address family violence in a parenting answer will cost significant marks.

ISSUE

The issue is what impact [RESPONDENT]'s family violence — including [physical abuse / coercive control / psychological abuse / financial control] — has on the parenting order to be made, having regard to Divorce Act s.16(3)(j) and s.16(4).

RULE

Divorce Act s.16(3)(j): The court MUST consider any family violence and its impact on: (i) the child's safety, security and well-being; and (ii) the ability and willingness of the person who engaged in family violence to care for and meet the child's needs. S.16(4): WHERE FAMILY VIOLENCE IS ESTABLISHED: The court must give primary weight to the safety, security and well-being of the child, even where this conflicts with the maximum contact principle. FAMILY VIOLENCE includes: physical abuse; sexual abuse; psychological abuse (intimidation, threats, isolation, humiliation); financial abuse; harassment and stalking; killing or harming animals or property; and COERCIVE CONTROL — a pattern of behaviour to control, manipulate, isolate, or intimidate. Coercive Control (Nonomura et al., 2021; Katz et al., 2020): Post-separation coercive control continues to harm children — it harms them directly AND by undermining the safe parent's ability to parent effectively. Courts must recognize that domestic violence does not end at separation.

STEP 1: Establish Whether Family Violence Exists

Because [RESPONDENT]'s conduct has included [describe specific conduct from the facts — e.g., 'repeated physical assaults on [APPLICANT] documented in medical records and police reports' / 'a pattern of controlling behaviour including financial control, monitoring [APPLICANT]'s movements, and isolating [APPLICANT] from family and friends'], [RESPONDENT]'s conduct constitutes family violence within the broad definition in Divorce Act s.2(1). This includes COERCIVE CONTROL — a recognized form of family violence that does not require physical acts.

STEP 2: Assess the Impact on the Child (s.16(3)(j)(i))

Because [CHILD] has [witnessed the violence / been directly affected by the coercive control / been

used as a tool in the controlling behaviour / suffered documented psychological harm from the environment of fear and control], [RESPONDENT]'s family violence has directly impacted [CHILD]'s safety, security, and well-being. [Post-separation: Per Katz et al. 2020, post-separation coercive control continues to harm children. Even after separation, [RESPONDENT]'s [monitoring of [APPLICANT] / interference with parenting time / threats] continues the pattern of control and harms [CHILD].]

STEP 3: Assess [RESPONDENT]'s Ability to Meet [CHILD]'s Needs (s.16(3)(j)(ii))

Because [RESPONDENT]'s family violence [reflects a pattern of prioritizing their own needs for control over [CHILD]'s wellbeing / has not been acknowledged by [RESPONDENT] / has not been addressed through therapy or counselling], [RESPONDENT]'s willingness and ability to care for and meet [CHILD]'s needs is [called into question / significantly impaired]. A parent who uses violence or coercive control cannot reliably prioritize the child's needs.

STEP 4: Apply s.16(4) — Safety Takes Priority

Under s.16(4), where family violence is established, the child's safety, security, and well-being takes priority — even over the principle of maximum contact with both parents. Because [CHILD]'s safety requires [supervised parenting time / limited contact / specific conditions], [RESPONDENT]'s parenting time should be [ordered with conditions: specify] to protect [CHILD].

CONCLUSION

Family violence has been established under Divorce Act s.16(3)(j). [RESPONDENT]'s [physical abuse / coercive control / pattern of violence] has impacted [CHILD]'s safety and security and calls into question [RESPONDENT]'s ability to prioritize [CHILD]'s needs. Under s.16(4), [CHILD]'s safety takes priority. The parenting order should [provide supervised parenting time for [RESPONDENT] / limit [RESPONDENT]'s decision-making responsibility / impose specific conditions — e.g., no contact outside of exchange location / require completion of a certified domestic violence program before unsupervised time is granted].

△ EXAM TIP — FAMILY VIOLENCE IS MANDATORY — NEVER SKIP IT

If the facts mention: controlling behaviour, financial control, isolation, threats, physical altercations, post-separation harassment, or monitoring — you **MUST** address s.16(3)(j) and s.16(4). Failing to address family violence in a parenting answer that contains those facts will cost you 5-10 marks. Cite both the statutory provision AND the coercive control academic framework (Nonomura et al.; Katz et al.).

Template 29 — Voice of the Child — Divorce Act s.16(3)(e)

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use when the child has expressed a preference about parenting arrangements, or when a party argues the child's views should be determinative.

Also use when the Office of the Children's Lawyer (OCL) or a parenting assessment is relevant.

ISSUE

The issue is what weight should be given to [CHILD]'s expressed preference to live primarily with [APPLICANT / RESPONDENT], having regard to [CHILD]'s age, maturity, and the other best interests factors.

RULE

Divorce Act s.16(3)(e): The court shall consider [CHILD]'s views and preferences, giving them SUCH WEIGHT AS THE COURT CONSIDERS APPROPRIATE, in light of [CHILD]'s age and maturity. KEY PRINCIPLES: (1) A child's preference is ONE factor among many — it is NOT determinative; (2) The older and more mature the child, the more weight their preference receives; (3) Courts must assess whether the child's preference is GENUINELY THEIR OWN or has been influenced by a parent (alienation); (4) A teenager's clear, consistent preference is generally given significant weight — courts recognize the impracticality of forcing a teenager to live against their will.

STEP 1: Assess the Child's Age and Maturity

Because [CHILD] is [AGE] years old and [describe indicators of maturity: 'has consistently expressed the same preference across multiple interviews with different professionals' / 'is able to articulate specific reasons for the preference that relate to their own needs rather than loyalty to one parent'], [CHILD]'s views are [given significant weight / noted but given limited weight].

STEP 2: Assess Whether the Preference Is Genuine

Because [CHILD]'s preference [appears to be genuinely their own, consistent across different contexts and over time / may be influenced by [RESPONDENT]'s [communications / coaching / alienating behaviour] given [describe indicators of influence]], the preference [is / may not be] a reliable indicator of [CHILD]'s true wishes. [If alienation is suspected: apply Template 28 (Family Violence) if the alienating conduct rises to coercive control, or address the s.16(3)(c) friendly parent factor.]

STEP 3: Mechanism for Hearing the Child's Voice

Courts may hear [CHILD]'s views through: (a) a parenting assessment under CLRA s.30 or the Divorce Act — an expert assesses and reports on [CHILD]'s views and needs; (b) the Office of the Children's Lawyer (OCL) — a separate lawyer or clinician represents [CHILD]'s interests independently of both parents; (c) direct evidence (for older children/teenagers, courts sometimes hear from the child directly).

CONCLUSION

[CHILD]'s expressed preference to live with [APPLICANT / RESPONDENT] is given [significant / limited / moderate] weight, commensurate with [CHILD]'s age ([AGE]) and the indicators of genuine preference (vs. coached preference). This preference [is / is not] one factor that weighs toward [APPLICANT / RESPONDENT]'s proposed parenting arrangement, alongside the other best interests factors.

Template 30 — ADR Processes in Family Law — Mediation, Arbitration, and Collaborative Law

IRAC TEMPLATE**USE THIS TEMPLATE WHEN:**

Use for Part B of sample exam Q2 (10 marks) — describe the diverse ADR processes available to resolve family disputes.

The NCA Family Law exam ALWAYS tests ADR in Part B of the parenting question.

ISSUE

The issue is what alternative dispute resolution processes are available to [APPLICANT] and [RESPONDENT] to resolve their family law dispute, as an alternative to or in conjunction with court proceedings.

RULE

Divorce Act s.7.7(1): Every counsel acting in a divorce proceeding has a duty to discuss with their client: the possibility of reconciliation; the advisability of negotiating matters; and the availability of mediation and other dispute resolution options. Three core ADR processes are available in Canadian family law:

OPTION 1: Family Mediation

WHAT IT IS: A neutral mediator facilitates negotiation between the parties, helping them reach their own agreement. The mediator does NOT impose a decision — any agreement reached must be reduced to a domestic contract (separation agreement) to be enforceable. STATUTORY BASIS: Divorce Act s.7 (duty of counsel to discuss mediation); FLA s.3 (court may refer to mediation); CLRA s.31 (court may appoint mediator). PRIVILEGE: Communications made during family mediation are PRIVILEGED — they cannot be used in subsequent court proceedings. Association de médiation familiale du Québec v Bouvier, 2021 SCC 54. BEST FOR: Parties who can communicate and have some trust; disputes where flexibility and creativity in solutions is valuable (e.g., custom parenting schedules); lower cost and faster than litigation.

OPTION 2: Arbitration

WHAT IT IS: A private arbitrator (typically a family lawyer or former judge) hears evidence from both parties and makes a BINDING DECISION (arbitral award). The arbitrator acts like a private judge. STATUTORY BASIS: Divorce Act ss.7-7.7(3) (procedural safeguards required for family arbitration). MANDATORY SAFEGUARDS (post-2006 Ontario reforms): (1) Both parties must receive independent legal advice before signing the arbitration agreement; (2) The arbitrator must be a family law lawyer or former judge; (3) Parties retain appeal rights on questions of law; (4) Arbitration agreements conflicting with family law legislation are unenforceable. BEST FOR: Parties who want a private, binding decision faster and with more control over the process than court; cases where the parties want a specific expert as decision-maker.

OPTION 3: Collaborative Family Law

WHAT IT IS: Each party retains a specially trained collaborative lawyer. All four (both parties and both lawyers) sign a participation agreement committing to settle outside of court. If the collaborative process fails, the collaborative lawyers MUST withdraw — new litigation lawyers must be retained. This creates a powerful incentive to settle. NO STATUTORY BASIS: Not legislated; governed by the participation agreement and professional norms. BEST FOR: Parties who want to preserve a respectful relationship (especially co-parenting relationships); complex matters where expert input

(financial planners, child specialists) is needed in the settlement process; higher-net-worth cases.

OPTION 4: Parenting Assessments (CLRA s.30)

WHAT IT IS: An assessor appointed by the court (psychologist, social worker, or psychiatrist) assesses the child's needs and the ability of each parent to meet those needs, and files a report with the court. NOT STRICTLY ADR — but an important alternative to purely adversarial parenting proceedings that can facilitate settlement once both parties see an objective expert opinion.

CONCLUSION

The following ADR processes are available to [APPLICANT] and [RESPONDENT]: 1. Family mediation — facilitated negotiation, mediation privilege (Bouvier), no binding decision, requires separation agreement to be enforceable. 2. Arbitration — binding private adjudication, procedural safeguards required (DA ss.7-7.7), appeal on questions of law. 3. Collaborative law — settlement-focused, participation agreement, lawyers must withdraw if process fails. [Recommend the most appropriate process based on the specific facts — e.g., whether parties can communicate, whether children are involved, urgency of the dispute.]

⚠ EXAM TIP — ADR IS ALWAYS PART B OF Q2 — KNOW ALL THREE PROCESSES

The sample exam Q2(B) asks candidates to 'describe the diverse processes that might be used.' Full marks require: naming at least three processes; explaining what each involves (facilitator? decision-maker? binding or not?); citing the statutory basis for at least two (DA s.7, FLA s.3, CLRA s.31, Bouvier); and noting the mediation privilege. Candidates who only discuss mediation without covering arbitration and collaborative law will not earn full marks.

PART G

EQUALIZATION OF NET FAMILY PROPERTY AND MATRIMONIAL HOME

Template 31 — Equalization of Net Family Property — Complete Four-Step Calculation

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use for EVERY equalization of NFP question — this is always Q5 on the NCA Family Law exam. The calculation must be applied to BOTH spouses. Then calculate the equalization payment. Only married spouses have equalization rights under the FLA.

ISSUE

The issue is the equalization of net family property between [APPLICANT] and [RESPONDENT] under Part I of the Family Law Act, and specifically what equalization payment, if any, is owed.

RULE

Family Law Act s.5(1): When a marriage is terminated [by separation, divorce, or death], the spouse with the HIGHER net family property owes the other spouse one half the difference between their net family properties. FLA s.4(1) DEFINITION OF NFP: The value of all property that a spouse OWNS on the valuation date, after deducting: — The spouse's debts and other liabilities at the valuation date; AND — The value of property (other than a matrimonial home) that the spouse owned on the date of marriage, after deducting pre-marital debts. FLA s.4(2) EXCLUDED PROPERTY (deducted from Step 1): (a) Gifts or inheritances from a third party received during the marriage; (b) Income from (a) ONLY if the donor/testator expressly stated income should be excluded; (c) Damages for personal injury (non-pecuniary only — pain and suffering); (d) Proceeds of a life insurance policy; (e) Property agreed in a domestic contract to be excluded; (d) Property traceable to any of (a)-(e). THE MATRIMONIAL HOME EXCEPTION: The matrimonial home is NEVER excluded property, even if it was received as a gift, an inheritance, or was owned before the marriage. It cannot be claimed as a date-of-marriage deduction. EQUALIZATION PAYMENT: = (HIGHER NFP – LOWER NFP) ÷ 2

STEP 1 — APPLICANT: List All Property Owned at Valuation Date

APPLICANT'S ASSETS AT [DATE_SEP] (valuation date): ☐ Matrimonial home (fair market value at valuation date): \$[HOME_VALUE] ☐ Vehicle(s) (fair market value): \$[VEHICLE_VALUE] ☐ Bank accounts: \$[BANK] ☐ RRSPs / RRIFs (market value): \$[RRSP] ☐ Pension (present / transfer value): \$[PENSION] ☐ Investments / stocks / bonds: \$[INVESTMENTS] ☐ Business interest (fair market value): \$[BUSINESS] ☐ [ASSET] received as gift / inheritance: \$[GIFT_VALUE] ← NOTE for exclusion ☐ Life insurance (cash surrender value if not paid out; or proceeds if paid): \$[LI] ☐ Personal injury damages received: \$[DAMAGES] ☐ Other property: \$[OTHER] STEP 1 TOTAL (APPLICANT): \$[STEP1_A]

STEP 2 — APPLICANT: Subtract Valuation Date Debts and Liabilities

APPLICANT'S DEBTS AT [DATE_SEP]: ☐ Mortgage balance: \$[MORTGAGE] ☐ Vehicle loans: \$[CAR_LOAN] ☐ Credit card debt: \$[CC] ☐ Personal loans: \$[LOANS] ☐ Other debts: \$[OTHER_DEBT] STEP 2 TOTAL DEBTS (APPLICANT): \$[STEP2_A] NET ASSETS AFTER STEP 2: \$[STEP1_A] – \$[STEP2_A] = \$[NET_A]

STEP 3 — APPLICANT: Subtract Excluded Property (FLA s.4(2))

EXCLUDED PROPERTY (deduct the VALUE AT VALUATION DATE): ☐ Gifts from third parties during marriage (s.4(2)(a)): \$[GIFTS] ☐ Inheritances from third parties (s.4(2)(a)): \$[INHERITANCES] ☐ Life insurance proceeds received during marriage (s.4(2)(d)): \$[LI_PROCEEDS] ☐ Non-pecuniary personal injury damages — pain and suffering only (s.4(2)(c)): \$[PAIN_SUFF] ☐ Property traceable to above (s.4(2)(d)): \$[TRACED] NOT EXCLUDED: Lost wages damages; income from gifts/inheritances (unless expressly directed); matrimonial home. STEP 3 EXCLUSIONS (APPLICANT): \$[STEP3_A] AFTER STEP 3: \$[NET_A] – \$[STEP3_A] = \$[AFTER3_A]

STEP 4 — APPLICANT: Subtract Date-of-Marriage Deduction

ASSETS OWNED AT DATE OF MARRIAGE ([DATE_M]): ☐ Property A owned at marriage: \$[DATE_M_ASSET1] ← NOTE: If this property was the matrimonial home at valuation date, NO deduction allowed. ☐ Property B owned at marriage: \$[DATE_M_ASSET2] ☐ Total assets at date of marriage: \$[DATE_M_ASSETS] DEBTS AT DATE OF MARRIAGE: \$[DATE_M_DEBTS] DATE OF MARRIAGE DEDUCTION = \$[DATE_M_ASSETS] – \$[DATE_M_DEBTS] = \$[DATE_M_DED] (If negative → deduction is \$0) APPLICANT'S NFP = \$[AFTER3_A] – \$[DATE_M_DED] = \$[NFP_A]

REPEAT STEPS 1-4 FOR RESPONDENT using the same template to calculate [RESPONDENT]'s NFP = \$[NFP_R].

EQUALIZATION PAYMENT: Calculate and State Who Pays

Higher NFP = \$[HIGHER] ([HIGHER_SPOUSE]) Lower NFP = \$[LOWER] ([LOWER_SPOUSE])
 EQUALIZATION PAYMENT = $(\$[HIGHER] - \$[LOWER]) \div 2 = \$[PAYMENT]$ [HIGHER_SPOUSE]
 owes [LOWER_SPOUSE] \$[PAYMENT] as the equalization payment. [HARDSHIP CHECK: Is the
 equalization payment unconscionable under s.5(6)? Only in extreme circumstances — was property
 deliberately dissipated? Was the marriage very short? The unconscionability threshold is high.]

CONCLUSION

Applying the FLA NFP formula: [APPLICANT]'s NFP = \$[NFP_A]; [RESPONDENT]'s NFP = \$[NFP_R]. [HIGHER_SPOUSE]'s NFP is higher by \$[DIFFERENCE]. The equalization payment is \$[PAYMENT] payable from [HIGHER_SPOUSE] to [LOWER_SPOUSE].

POTENTIAL EXAM SCENARIOS

MATRIMONIAL HOME TRAP: Home worth \$500K at valuation date, owned before marriage at \$200K. If still the matrimonial home → include \$500K in Step 1; NO deduction in Step 4. If never the matrimonial home → include in Step 1; deduct \$200K (value at date of marriage) in Step 4.

INHERITANCE TRAP: Received \$400K inheritance during marriage. Exclude the \$400K (Step 3) — value at valuation date. If inherited \$100K and it grew to \$400K → exclude \$400K (traced).

LOST WAGES TRAP: \$180K in lost wages damages → NOT excluded. \$25K for pain and suffering → EXCLUDED (s.4(2)(c)).

DEBT TRAP: Debts at date of marriage of \$35K but no assets at date of marriage → Step 4 deduction = \$0 (cannot be negative).

⚠ EXAM TIP — SHOW EVERY STEP FOR EVERY MARK

On Q5, the marks follow the methodology. Show Step 1 totals, Step 2 subtractions, Step 3 exclusions (naming each excluded item with its statutory basis), Step 4 date-of-marriage deduction, and the final NFP for BOTH spouses. Then the equalization formula. Even if your numbers are slightly off, the correct method earns most of the marks. The matrimonial home trap, the lost wages vs pain and suffering distinction, and the date-of-marriage deduction trap are worth 6-8 marks on their own.

Template 32 — Matrimonial Home — Possession and Disposition (FLA ss.18-26)

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use when one spouse claims the right to remain in or exclude the other from the matrimonial home, or when a spouse attempts to sell/mortgage the matrimonial home.

FLA s.21 — disposition without consent is VOID — is a critical exam trap.

ISSUE

The issue is whether [APPLICANT / RESPONDENT]'s rights with respect to the matrimonial home under Part II of the Family Law Act are engaged, including their right to possession under s.19 and/or

the consent requirement for disposition under s.21.

RULE

FLA s.18(1) DEFINITION: Every property in which a person has an interest AND that is or was at separation ordinarily occupied by the person and their spouse as their family residence is a matrimonial home. A couple may have MORE THAN ONE matrimonial home. FLA s.19 — EQUAL POSSESSION RIGHTS: Both spouses have an equal right to POSSESS the matrimonial home, regardless of who legally owns it. FLA s.21 — CONSENT REQUIRED FOR DISPOSITION: A spouse who has an interest in the matrimonial home CANNOT dispose of it (sell, mortgage, transfer) without the WRITTEN CONSENT of the other spouse. Disposition without consent is VOID. FLA s.24 — EXCLUSIVE POSSESSION: The court may grant one spouse exclusive possession of the matrimonial home, excluding the other spouse, where justified by the best interests of any child or other factors.

STEP 1: Is the Property the Matrimonial Home?

Because [PROPERTY] [is / was at the time of separation] ordinarily occupied by [APPLICANT] and [RESPONDENT] as their family residence, and because [APPLICANT / RESPONDENT] has an interest in the property, it is a matrimonial home within the meaning of FLA s.18(1). [If multiple properties: Because both [primary residence] and [cottage/secondary property] were ordinarily occupied as family residences, both are matrimonial homes — with the critical consequence that neither can be excluded from the NFP calculation or claimed as a date-of-marriage deduction.]

STEP 2: Assess Possession Rights (s.19)

Because FLA s.19 grants both spouses an EQUAL right to possess the matrimonial home regardless of ownership, [RESPONDENT]'s claim to exclude [APPLICANT] from the home — even though the home is registered in [RESPONDENT]'s name alone — is not available without a court order. [APPLICANT] has an equal right to possess the home until either: (a) a court order terminates that right; or (b) the parties agree otherwise.

STEP 3: Address the Consent Requirement (s.21) — if applicable

Because [RESPONDENT] [has attempted to sell / has mortgaged / has entered into an agreement to transfer] the matrimonial home without obtaining [APPLICANT]'s written consent, this purported disposition is VOID under FLA s.21. [APPLICANT]'s consent was not given — [RESPONDENT] cannot proceed with the transaction. [APPLICANT] may apply for an injunction to restrain the completion of the disposition and seek an order requiring [RESPONDENT] to obtain [APPLICANT]'s consent before proceeding.

STEP 4: Exclusive Possession (s.24) — if applicable

[If exclusive possession is sought:] Under FLA s.24, the court may grant [APPLICANT] exclusive possession of the matrimonial home, excluding [RESPONDENT] from the property, where [the best interests of the children / [APPLICANT]'s need for security and stability / evidence of family violence] justifies such an order. Because [identify the specific grounds from the facts], exclusive possession should be [granted to / denied for] [APPLICANT].

CONCLUSION

The matrimonial home is [PROPERTY]. [APPLICANT]'s rights under FLA Part II include: [s.19 equal

right to possess → [APPLICANT] cannot be unilaterally excluded]; [s.21 consent requirement → any disposition without [APPLICANT]'s written consent is void]; [s.24 exclusive possession → [should / should not] be granted on the basis of [grounds]].

⚠ **EXAM TIP — FLA s.21 — VOID WITHOUT CONSENT**

If the fact pattern mentions that a spouse sold, mortgaged, or agreed to transfer the matrimonial home → your first reaction must be: 'Was consent given?' If not → the disposition is VOID. This is an absolute rule with no exceptions except where the non-owning spouse has released their possessory rights under s.21(2). State 'void' explicitly.

Template 33 — Unequal Division of NFP — FLA s.5(6) Unconscionability

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use only when a party argues for a departure from the standard 50/50 equalization. The threshold is UNCONSCIONABILITY — very high.

Rarely granted — mere unfairness is insufficient.

ISSUE

The issue is whether equal division of the net family properties would be unconscionable under FLA s.5(6), warranting an order for unequal division.

RULE

FLA s.5(6): The court may award an amount that is more or less than half the difference between the net family properties if equalizing the net family properties would be UNCONSCIONABLE having regard to specific grounds set out in the subsection. GROUNDS FOR UNEQUAL DIVISION (s.5(6)): (a) Spouse's failure to disclose debts or liabilities at time of marriage; (b) Debts or other liabilities incurred recklessly or in bad faith; (c) Unconscionable result given the short duration of the marriage, the date the spouses began to cohabit, or the circumstance of the marriage; (d) Spouse's significant contribution to the other's business; (e) Prior family law order or agreement; (f) A debtor-creditor relationship between the spouses; (g) Written agreement that is not a domestic contract; (h) Other circumstances. THE HIGH THRESHOLD: Unconscionability is a HIGH standard — it is not met by mere unfairness, disproportion, or significant unfairness. The result must 'shock the conscience of the court.' Courts interpret s.5(6) restrictively to protect the certainty of the equalization regime.

STEP 1: Identify the Ground Under s.5(6)

Because [identify the specific ground from the fact pattern — e.g., 'the marriage lasted only [X months/years], and the equalization payment would provide [APPLICANT] with a windfall disproportionate to the length of the relationship (s.5(6)(c))' / '[RESPONDENT] deliberately dissipated assets in the months before separation to reduce their NFP (s.5(6)(b))'], ground [identify] of s.5(6) may be engaged.

STEP 2: Apply the Unconscionability Threshold

Because s.5(6) requires unconscionability — a result that shocks the conscience of the court — and not mere unfairness or disproportion, I must assess whether equal division in these specific circumstances crosses that threshold. [If the marriage was very short: A [X]-month marriage that would produce an equalization payment of \$[AMOUNT] — representing a significant windfall for [APPLICANT] — may cross the unconscionability threshold where there was minimal economic integration and no joint accumulation of wealth.] [If assets were dissipated: [RESPONDENT]'s deliberate disposal of [assets] in the months before separation — reducing their NFP by \$[AMOUNT] — is precisely the type of bad faith conduct that s.5(6)(b) is designed to address.]

CONCLUSION

Unequal division under FLA s.5(6) [is / is not] warranted. Because [the specific ground from s.5(6)] [does / does not] render equal division unconscionable — [not merely unfair but genuinely shocking to the court's conscience] — the court [should depart from equal division / should maintain equal division as required by the default FLA rule]. [If departing: The court should award [APPLICANT] \$[ADJUSTED AMOUNT] rather than \$[EQUAL PAYMENT], reflecting [identify the adjustment and its basis].]

⚠ EXAM TIP — UNCONSCIONABILITY IS A HIGH BAR — MOST ARGUMENTS FAIL

Most candidates incorrectly argue for unequal division whenever the equalization result seems unfair. This is wrong — the standard is unconscionability, not unfairness. Mere disproportion, a result that seems generous to the recipient, or general inequality is insufficient. Only flag s.5(6) if the facts clearly support one of the listed grounds AND the result would truly shock the conscience.

PART H

DOMESTIC CONTRACTS

Template 34 — Setting Aside a Domestic Contract — FLA s.56(4)

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use when a party seeks to set aside all or part of a separation agreement, marriage contract, or cohabitation agreement.

Always apply BEFORE the Miglin test — s.56(4) provides the statutory grounds; Miglin provides the additional spousal support analysis.

ISSUE

The issue is whether [AGREEMENT] or any provision therein should be set aside under FLA s.56(4).

RULE

FLA s.56(4): A court may set aside a domestic contract or a provision in it if: (a) A party FAILED TO DISCLOSE SIGNIFICANT assets or debts existing when the contract was made; (b) A party did not understand the NATURE OR CONSEQUENCES of the contract; (c) Otherwise IN ACCORDANCE WITH THE LAW OF CONTRACT (unconscionability, fraud, duress, undue influence). FLA s.56(4) RESIDUAL POWER: The court also has residual jurisdiction to set aside support provisions if enforcement would be UNCONSCIONABLE having regard to changes in circumstances. Note: Even if s.56(4) grounds are not met, spousal support provisions in domestic contracts remain subject to the Miglin two-stage test (Template 35). S.56(4) is broader — it can set aside the entire contract; Miglin governs specifically how courts exercise discretion with respect to spousal support provisions.

GROUND (a): Failure to Disclose Significant Assets or Debts

Because [RESPONDENT] [failed to disclose [specific undisclosed asset — e.g., 'a pension with a transfer value of \$[AMOUNT]' / 'a business interest valued at \$[AMOUNT]' / 'a pending inheritance of \$[AMOUNT]'] at the time [AGREEMENT] was entered into], [APPLICANT] executed the agreement without full knowledge of [RESPONDENT]'s financial position. The test for significance: was the undisclosed asset or debt SIGNIFICANT enough that knowledge of it would likely have affected [APPLICANT]'s willingness to sign or the terms negotiated? Because [APPLICANT] would [likely have negotiated differently / declined to waive equalization / sought different support terms] had they known of [the undisclosed asset], the failure of disclosure is significant and warrants setting aside the [relevant provision / entire agreement].

GROUND (b): No Understanding of Nature or Consequences

Because [APPLICANT] [executed the agreement without independent legal advice / was not informed of the specific rights they were waiving / signed the agreement under time pressure without adequate opportunity to review its terms / lacked the education or legal sophistication to understand the consequences of [specific provision]], [APPLICANT] did not understand the nature or consequences of the contract within the meaning of s.56(4)(b). The role of independent legal advice (ILA): While ILA is not explicitly required by s.56(4), the absence of ILA is strong evidence that a party did not understand what they were giving up. Where one party (particularly a lawyer or business person) drafted the agreement and the other signed without ILA — as in sample exam Q4 — s.56(4)(b) is directly engaged.

GROUND (c): Contract Law Grounds — Duress, Undue Influence, Unconscionability

[DURESS:] Because [APPLICANT] was under [physical threat / financial pressure / emotional coercion] at the time of signing — [describe specific facts] — the agreement was not entered into voluntarily. [UNDUE INFLUENCE:] Because [RESPONDENT] occupied a position of dominance and trust over [APPLICANT] — [e.g., as the lawyer who drafted the agreement, as the spouse controlling all finances] — and exploited that position to procure [APPLICANT]'s signature, the agreement may be set aside for undue influence. [UNCONSCIONABILITY:] Because the terms of the agreement are grossly unfair — [describe: 2/3 of assets to one party with full waiver of support by the other] — and because [APPLICANT] lacked meaningful choice or capacity to protect their interests, the agreement may be set aside as unconscionable under general contract law.

CONCLUSION

[AGREEMENT] should be set aside under FLA s.56(4) because: [(a) [RESPONDENT] failed to disclose significant assets (the [assets]) at time of contracting]; [(b) [APPLICANT] did not understand the nature and consequences of the agreement, particularly the waiver of spousal support and the unequal property division, as evidenced by the absence of ILA]; [(c) the agreement was procured by [duress / undue influence / unconscionability]]. [If only specific provisions are set aside: The court may

set aside only the [support waiver / property allocation] provision while giving effect to other provisions of the agreement.]

⚠ **EXAM TIP — SAMPLE EXAM Q4 — ALL THREE GROUNDS APPLY**

The sample exam Q4 presents Edward (a lawyer) who drafted a separation agreement giving himself 2/3 of assets with Mary waiving all spousal support. Mary had no ILA and expressly waived financial disclosure. Analysis: Ground (a) — Mary waived disclosure — she does not know the value of Edward's assets, so disclosure of significant assets effectively failed; Ground (b) — no ILA, no understanding of what she waived; Ground (c) — the agreement is facially unconscionable (2/3 to 1/3, full support waiver). All three grounds apply. The court should set aside the agreement.

Template 35 — Miglin Test — Separation Agreements and Spousal Support (Full Analysis)

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use when a separation agreement (or any domestic contract) contains a spousal support provision and one party seeks to override it or enforce it.

Template 34 (s.56(4)) sets aside the contract; this template governs the court's exercise of discretion with respect to the support provisions specifically.

The most tested template in the Domestic Contracts section.

ISSUE

The issue is whether [RECIPIENT]'s contractual [waiver of / entitlement to] spousal support in [AGREEMENT] should be given effect, applying the Miglin v Miglin [2003] 1 SCR 303 two-stage test.

RULE

Miglin v Miglin [2003] 1 SCR 303: Courts will give substantial weight to a contractual agreement about spousal support IF it passes both stages of the Miglin test. The test balances certainty (parties should rely on agreements) against protection (unjust agreements should not be enforced). STAGE 1 — CIRCUMSTANCES AT CONTRACTING: • Both parties received INDEPENDENT LEGAL ADVICE (ILA)? • FULL FINANCIAL DISCLOSURE was made by both parties? • No DURESS, emotional pressure, or significant POWER IMBALANCE at the time of signing? • Did the agreement, at the time executed, substantially comply with the Divorce Act s.15.2(6) OBJECTIVES (compensatory, hardship relief, self-sufficiency)? STAGE 2 — CURRENT COMPLIANCE: • Has there been a RADICAL CHANGE in circumstances since the agreement was signed — a change so fundamental that it was NOT within the parties' reasonable contemplation? • Does the agreement continue to SUBSTANTIALLY COMPLY with the Divorce Act objectives in light of current circumstances?

STAGE 1: Circumstances at Contracting

INDEPENDENT LEGAL ADVICE: Because [APPLICANT] [received / did not receive] independent legal advice before executing [AGREEMENT], [this is / this is not] a properly negotiated agreement. [If no ILA: The absence of ILA is a significant indicator that [APPLICANT] may not have fully understood the rights being waived — particularly the waiver of spousal support.] FINANCIAL DISCLOSURE:

Because [RESPONDENT] [made full disclosure of all significant assets and liabilities / failed to disclose [asset/liability]] at the time of contracting, [the disclosure requirement is / is not] satisfied. [If waived: The express waiver of disclosure by [APPLICANT] does not cure the lack of disclosure if [APPLICANT] lacked the information necessary to make an informed decision.] **POWER IMBALANCE:** Because [RESPONDENT] [drafted the agreement as a lawyer / controlled the family finances / held a position of dominance], [there is / is not] a significant power imbalance that calls the fairness of the contracting process into question. **COMPLIANCE WITH s.15.2(6) AT TIME OF EXECUTION:** At the time of signing, did the agreement substantially reflect the four Divorce Act objectives? • Recognition of economic advantages/disadvantages? [Did the agreement address career sacrifice or economic role differentiation?] • Apportionment of child care financial consequences? [Did the agreement appropriately account for parenting roles?] • Relief of economic hardship? [Was the support provision (or waiver) appropriate given the parties' income disparity?] • Promotion of self-sufficiency? [Was the support period (or waiver) consistent with the recipient's self-sufficiency prospects?] **[STAGE 1 CONCLUSION:** Because [identify specific deficiencies: no ILA, no disclosure, power imbalance, non-compliant provisions], the agreement [was / was not] entered into in circumstances free from overreaching. The court should give this agreement [little / substantial] weight.]

STAGE 2: Current Compliance with Divorce Act Objectives

Because [RECIPIENT]'s current circumstances are [income \$[INCOME_R], health status, employment prospects, [describe relevant circumstances]], and because [PAYOR]'s current circumstances are [income \$[INCOME_P]], I must assess whether the agreement continues to substantially comply with s.15.2(6) objectives in light of current circumstances. **[IF RADICAL CHANGE:]** Because [RECIPIENT] has since [developed a disability / suffered a career setback / experienced circumstances] that was NOT within the parties' reasonable contemplation when [AGREEMENT] was signed in [YEAR] — [describe why this was not anticipated] — this constitutes a radical change that renders the agreement inappropriate as written. The current circumstances depart fundamentally from what the parties anticipated. **[IF NO RADICAL CHANGE:]** Because [RECIPIENT]'s current circumstances are not fundamentally different from what was reasonably contemplated at the time of signing, [AGREEMENT] continues to substantially comply with the Divorce Act objectives and should be respected by the court. **[STAGE 2 CONCLUSION:** The agreement [continues to / no longer] substantially reflects the Divorce Act objectives. The change in circumstances [is / is not] a radical change that was not within the parties' reasonable contemplation.]

FRESH ANALYSIS (if Miglin not satisfied): Conduct Fresh Spousal Support Analysis

Because [AGREEMENT] does not pass the Miglin test [Stage 1 and/or Stage 2], the court should conduct a fresh spousal support analysis: (a) Entitlement: [Apply Template 19 (Moge) and/or Template 20 (Bracklow) to current circumstances] (b) Quantum and Duration: Apply SSAG [without/with]-child formula: income differential \$[DIFFERENTIAL]; SSAG range \$[LOW] to \$[HIGH]/month; duration [range]. An award of \$[AMOUNT]/month for [DURATION] is appropriate.

CONCLUSION

Applying the Miglin two-stage test: Stage 1 — the agreement [passes / fails] because [Stage 1 analysis summary]. Stage 2 — the agreement [continues to reflect / no longer reflects] the Divorce Act objectives because [Stage 2 analysis summary]. Therefore, the court [should respect the agreement / should override the agreement and award fresh spousal support of \$[AMOUNT]/month for [DURATION]].

⚠ EXAM TIP — MIGLIN — STAGE 1 FAILS MOST COMMONLY ON ILA AND DISCLOSURE

In NCA exam fact patterns, Stage 1 almost always has deficiencies: the drafter was a lawyer (power imbalance), the other party had no ILA, or financial disclosure was waived. Identify ALL Stage 1 deficiencies, not just one. Even if Stage 1 is thin (agreement was fair at contracting), always go to

Stage 2 — the most interesting analysis is often whether circumstances have radically changed.

Template 36 — Cohabitation Agreements — FLA s.53

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use when the parties are or were unmarried cohabitants and had a cohabitation agreement.
Also use when advising cohabiting parties on what a cohabitation agreement can and cannot cover.
Key: cohabitation agreements must comply with the same formal requirements as marriage contracts.

ISSUE

The issue is whether [AGREEMENT], as a cohabitation agreement under FLA s.53, is valid and enforceable, and whether its provisions should be given effect.

RULE

FLA s.53: Two persons who are cohabiting or intend to cohabit, and who are NOT married to each other, may enter into a COHABITATION AGREEMENT in which they agree on their respective rights and obligations during cohabitation, or on separation, or on death. WHAT IT CAN COVER (s.53(1)): ownership or division of property; support obligations; the right to direct the education and moral training of their children; any other matter in the settlement of their affairs. WHAT IT CANNOT COVER: the right to direct the religious upbringing of a child (family law legislation distinguishes this); child support (a cohabitation agreement cannot bind the court on child support — the child's right to support is paramount and the court retains jurisdiction to make appropriate orders regardless of any agreement). FORMAL REQUIREMENTS (FLA s.55): Must be in writing, signed, and witnessed. IF PARTIES SUBSEQUENTLY MARRY: Under FLA s.53(2), if the parties subsequently marry each other, the cohabitation agreement is deemed to be a MARRIAGE CONTRACT — and the rights and obligations under the FLA's matrimonial property regime (equalization of NFP) apply. SETTING ASIDE: Same FLA s.56(4) grounds apply as to other domestic contracts (Template 34). The Miglin test applies to spousal support provisions.

STEP 1: Confirm the Agreement Is Valid

Because [AGREEMENT] is in writing, signed by both [APPLICANT] and [RESPONDENT], and witnessed by [WITNESS], the formal requirements of FLA s.55 are satisfied. [If formal requirements are missing: Because [AGREEMENT] was not witnessed / was oral / was not signed by both parties, the formal requirements of FLA s.55 are not met and [AGREEMENT] is not enforceable as a domestic contract. However, the terms may still be evidence of the parties' intentions and may influence the equitable analysis under *Kerr v Baranow*.]

STEP 2: Assess What the Agreement Covers

Because [AGREEMENT] provides for [describe provisions: e.g., 'that neither party shall claim support from the other / that [RESPONDENT]'s business interests shall remain solely [RESPONDENT]'s property / that the property at [address] shall be shared equally on separation'], these provisions [are / are not] within the permissible scope of a cohabitation agreement under s.53(1).

STEP 3: Apply s.56(4) and Miglin Where Applicable

Because [APPLICANT] challenges specific provisions of [AGREEMENT], I apply [Template 34 — s.56(4) — for the challenge to the overall agreement] and [Template 35 — Miglin — for the spousal support provision specifically]. [Note: Child support provisions in a cohabitation agreement are NOT binding — the court retains jurisdiction to make an appropriate child support order regardless of any agreement (DA s.15.1(7)).]

STEP 4: Subsequent Marriage — If Applicable

[If the parties subsequently married:] Because [APPLICANT] and [RESPONDENT] subsequently married each other in [YEAR], [AGREEMENT], as their cohabitation agreement, is deemed a MARRIAGE CONTRACT under FLA s.53(2). As a marriage contract, it governs the parties' property rights. HOWEVER, a marriage contract CANNOT limit the parties' possessory rights to the matrimonial home (FLA s.52(2)) — that provision in the cohabitation/marriage contract would be unenforceable.

CONCLUSION

[AGREEMENT] is [a valid / not a valid] cohabitation agreement under FLA s.53. [If valid: The provisions of [AGREEMENT] regarding [support / property division] [should / should not] be given effect, subject to the Miglin test for spousal support and the s.56(4) setting aside grounds.] [If parties subsequently married: [AGREEMENT] is deemed a marriage contract under s.53(2).] [Child support: Any child support provision in [AGREEMENT] does not bind the court — the court retains full jurisdiction to order appropriate child support for [CHILD].]

⚠ EXAM TIP — COHABITATION AGREEMENT → MARRIAGE CONTRACT ON MARRIAGE

If fact pattern shows parties who had a cohabitation agreement and later married — flag FLA s.53(2): the cohabitation agreement becomes a marriage contract. This triggers the full FLA matrimonial property regime (equalization of NFP), which the cohabitation agreement may not have contemplated. This is a common exam trap.